

COMPLETE LEARNING SESSION

Amendment and Basic Structure - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Amendment and Basic Structure - Complete Learning Session

Evidence key: [FACT] = constitutional, judicial, parliamentary or officially verified proposition · [ANALYSIS] = reasoned exam synthesis · [CURRENT] = dated status · [LIMIT] = boundary or qualification.

SOURCE, STATUS AND NON-FABRICATION CONTROL

- Source order followed: Polity/basic/Amendment-and-Basic-Structure.md -> Polity/advanced/10_Amendment-and-Basic-Structure.md -> the complete topic owner -> official syllabus and audited PYQ routing ledgers -> OCR-searchable local polity books -> Constitution, amendment texts, Gazette, parliamentary material and Supreme Court judgments -> Qdrant not used.
- OCR book check: *Indian Polity by M. Laxmikanth*, amendment chapter at PDF pages 249-256 and basic-structure chapter at pages 257-264; *Courseware on Indian Polity by M. Laxmikanth*, corresponding chapters at PDF pages 258-271.
- [CURRENT] Legal and parliamentary status checked through **7 September 2026, Asia/Kolkata**.
- [FACT] Article 368 is in Part XX and authorises Parliament, in exercise of constituent power, to amend by addition, variation or repeal through the prescribed procedure.
- [CURRENT] Gazette **S.O. 1922(E)**, 16 April 2026, commenced the Constitution (One Hundred and Sixth Amendment) Act, 2023. Article 334A still makes operational reservation depend on publication of the relevant figures of the first census taken after commencement and delimitation for that purpose.
- [CURRENT] The Constitution (One Hundred and Thirty-first Amendment) Bill, 2026 was introduced in Lok Sabha on 16 April and negatived on 17 April 2026. It is used only as a verified illustration of the two House-majority limbs; it created no law or precedent.
- [CURRENT] *Anjum Kadari v. Union of India*, 2024 INSC 831, dated 5 November 2024, confirms that basic structure is not a free-standing ground to invalidate ordinary legislation; a statutory defect must be traced to competence, Part III or another constitutional provision.
- [FACT] Local final Set-A keys were checked directly for UPSC 2024 GS-I Q66 = **D** and UPSC 2025 GS-I Q58 = **A**. Final official/local-official keys are not held for the six reproduced 2018-2023 objective questions, so their answer letters are withheld.
- Practice control: **32 original MCQs**, strict ABCD x8 rotation, **128 unique option explanations**, **32 unique Examiner traps**, **2 direct Mains PYQs**, **8 routed objective PYQs**, and **6 original solved Mains questions**.
- [LIMIT] Detailed Preamble doctrine remains with Topic 4, Fundamental Rights with Topic 7, wider federalism with Topic 12 and Emergency provisions with Topic 14. Amendment-specific rules needed here are nevertheless complete.

Authoritative current sources

- Constitution of India, Part XX and connected Articles, Legislative Department/India Code editions.
- Constitution (Twenty-fourth), (Twenty-fifth), (Thirty-ninth), (Forty-second), (Ninety-ninth), (One Hundred and First) and (One Hundred and Sixth) Amendment texts.
- Supreme Court judgments: *Shankari Prasad*, *Sajjan Singh*, *I.C. Golak Nath*, *Kesavananda Bharati*, *Indira Nehru Gandhi*, *Minerva Mills*, *Waman Rao*, *S.R. Bommai*, *L. Chandra Kumar*, *I.R. Coelho*, NJAC and *Anjum Kadari*.
- Official e-Gazette PDF 271834 for S.O. 1922(E); Sansad Bill text and recorded parliamentary status for the defeated 2026 proposal.

LEARNING ROADMAP

Stage	Sessions	Outcome
Foundation	1-2	Understand constitutional change, three routes and majority vocabulary
Core procedure	3-5	Master Article 368 sequence, ratification and constituent-power boundaries
Core doctrine	6-11	Trace the cases, amendment responses, feature attribution and review tests
Synthesis	12-14	Apply current evidence, evaluate legitimacy and execute answers
Optional Advanced	final separate block	Compare identity, replacement and restraint theories without burdening the core answer

HOW TO USE THIS PACKAGE

1. Read the visual first and reconstruct the rule before reading the prose.
2. For every amendment problem ask: **route** -> **institution** -> **majority** -> **additional consent** -> **assent** -> **substantive limit**.
3. For every case ask: **holding** -> **amendment response** -> **later qualification** -> **remedy**.
4. In Mains answers use: **claim** -> **named constitutional/case evidence** -> **analysis** -> **qualification**.

BASIC LEARNING SESSION

SESSION 1 - WHY A CONSTITUTION NEEDS CHANGE WITHOUT SELF-DESTRUCTION

Stage: Foundation

VISUAL FIRST

CONSTITUTIONAL CHANGE

```
|
+--> routine adjustment through an express ordinary-law route
+--> entrenched change through Article 368 special majority
+--> federal-core change through special majority + State ratification
|
`--> ALL ROUTES REMAIN UNDER CONSTITUTIONAL SUPREMACY
      Article 368 may transform the charter; it cannot destroy its identity.
```

The visual separates procedural flexibility from the substantive identity limit.

DEFINITION / WHAT THIS IS CALLED

Constitutional amendment is formal alteration of the Constitution under an authorised constitutional route. Article 368 is the principal route and describes amendment by **addition, variation or repeal**.

ANSWER-GRABBING LINE

India combines a living Constitution with an entrenched identity: change is authorised, but constitutional self-destruction is not.

MUST-WRITE KEYWORDS

Part XX · Article 368 · constituent power · addition · variation · repeal · constitutional supremacy · flexibility-rigidity synthesis

Core idea

- [FACT] Article 368 is the sole Article in Part XX, "Amendment of the Constitution".

- [FACT] Parliament uses the ordinary Houses, yet acts in a special constituent capacity rather than through ordinary legislative competence alone.
- [ANALYSIS] Flexibility answers whether the text can respond to new needs; rigidity answers how much consent change requires; basic structure answers whether even procedurally valid change preserves constitutional identity.
- [LIMIT] "Flexible" and "rigid" are comparative descriptions. The legal answer must identify the actual constitutional route.
- [ANALYSIS] The correct conflict is constitutional supremacy versus claims of unlimited parliamentary power, not a simplistic judiciary-versus-democracy contest.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: India uses graded entrenchment. **Evidence:** Article 368 supplies constituent power and special majorities, while Articles 2-4 and similar provisions authorise selected ordinary-law changes. **Analysis:** The Constitution can adapt without making every provision equally easy or equally difficult to alter. **Qualification:** *Kesavananda Bharati* adds that even the strictest procedure cannot validate destruction of basic structure.

NAMED EVIDENCE

Part XX; Article 368(1); Articles 2-4; *Kesavananda Bharati* (24 April 1973); *Minerva Mills* (1980).

PRELIMS TRAP

"Constituent power" does not mean legally sovereign or immune power.

MAINS USE

Use this as the introduction to procedure, legitimacy, limited-power or constitutional-identity questions.

MINI RECAP

Three procedural levels enable change; basic structure supplies the substantive stop-line.

SESSION 2 - THREE ROUTES AND THE MAJORITY VOCABULARY

Stage: Foundation

VISUAL FIRST

Route	Parliamentary threshold	Additional consent	Legal character
Express ordinary-law route	Ordinary majority unless the enabling provision adds a special trigger	None under Article 368	Not deemed an Article 368 amendment
Article 368 special majority	Majority of total membership and at least two-thirds present and voting in each House	None	Most entrenched provisions
Article 368 federal route	Same dual special majority	Ratification by not less than half the States	Exact proviso subjects only

The table prevents "simple", "effective" and Article 368 special majorities from being mixed.

DEFINITION / WHAT THIS IS CALLED

India uses **graded entrenchment**: the required consent rises with the constitutional route selected by the text.

ANSWER-GRABBING LINE

The Constitution does not rank amendments by political importance; it assigns a route through the enabling provision and the Article 368 proviso.

MUST-WRITE KEYWORDS

outside Article 368 · ordinary law · total membership · present and voting · effective majority · enabling provision · Article 169 qualification

Route 1 - constitutionally authorised ordinary law outside Article 368

These are commonly called "amendments by simple majority", but the precise proposition is that a constitutional provision authorises ordinary legislation and often states that the change is not deemed an Article 368 amendment.

Constitutional field	High-yield change	Precision
Articles 2-4	Admission/establishment of States; formation, area, boundary or name changes; consequential First/Fourth Schedule changes	Article 4 supplies the non-Article-368 rule
Article 11	Acquisition, termination and other citizenship law	Detailed citizenship doctrine belongs to Topic 6
Article 169	Creation or abolition of a State Legislative Council	State Assembly first uses majority of total membership + two-thirds present and voting; Parliament's Act is ordinary
Article 239A and related UT grants	Constitutionally authorised UT legislature/executive arrangements	Check the exact enabling provision
Fifth Schedule para 7; Sixth Schedule para 21	Schedule amendment through their own mechanisms	Expressly outside Article 368
Parliamentary functioning	Quorum, salaries/allowances, procedure, privileges and authorised language adjustments	Does not authorise rewriting every related constitutional rule
Elections and delimitation	Ordinary election machinery/readjustment where constitutionally authorised	Entrenched State representation remains different
Judiciary details	Number of Supreme Court judges and further jurisdiction within an express grant	Altering the Union Judiciary chapter triggers ratification
Second Schedule matters	Authorised emolument/allowance adjustments	Apply the specific constitutional grant

Route 2 and Route 3

- [FACT] Both House limbs are simultaneous: a majority of **total membership** plus not less than **two-thirds of members present and voting**.
- [FACT] "Total membership" uses full sanctioned strength; vacancies do not reduce it.
- [FACT] Abstentions are excluded from "present and voting", but not from total membership.
- [FACT] The federal route adds State ratification; it does not replace either House threshold.

Effective majority - relevant contrast, not an Article 368 rule

Effective majority means a majority of the House's then-existing strength after vacancies and is used for selected removal resolutions elsewhere. Article 368 instead says **majority of total membership**, so the effective-majority denominator must not be imported.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Constitutional change follows three routes. **Evidence:** Article 4 excludes specified State reorganisation changes from Article 368; Article 169 uses an ordinary parliamentary law after a specially passed Assembly resolution; Article 368 demands two House majorities and sometimes State ratification. **Analysis:** Different consent costs preserve adaptability and entrenchment. **Qualification:** "Simple majority" is a shorthand, not proof that every step uses an ordinary majority.

NAMED EVIDENCE

Articles 4, 11, 169, 239A and 368; Fifth Schedule paragraph 7; Sixth Schedule paragraph 21.

PRELIMS TRAP

Effective majority is not the "majority of total membership" limb in Article 368.

MAINS USE

Use for flexibility-rigidity, classification and procedural-limit answers.

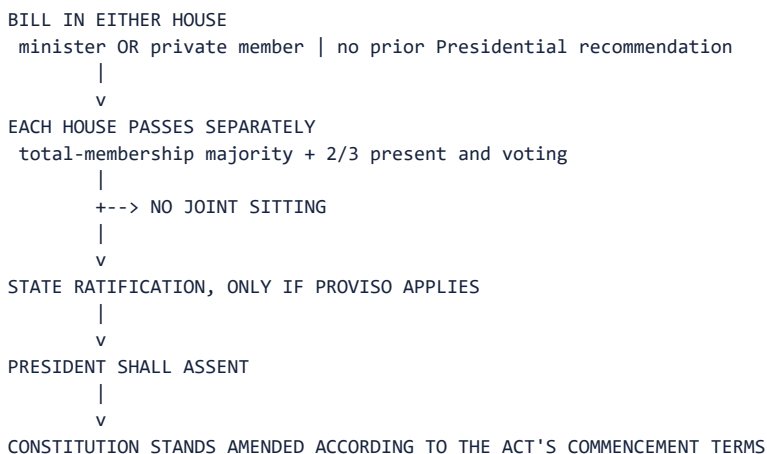
MINI RECAP

First identify the enabling provision; then calculate the correct threshold.

SESSION 3 - ARTICLE 368 PROCEDURE FROM INTRODUCTION TO ASSENT

Stage: Core

VISUAL FIRST



The process contains sequential veto points and no shortcut around either House.

DEFINITION / WHAT THIS IS CALLED

The **Article 368 amendment procedure** is the mandatory sequence governing initiation, separate House passage, conditional State ratification and Presidential assent.

ANSWER-GRABBING LINE

Article 368 gives both Houses equal constituent authority: failure in either House is final for that Bill because no joint sitting exists.

MUST-WRITE KEYWORDS

either House · minister/private member · no prior recommendation · each House separately · no joint sitting · President shall assent · no referendum

Exact procedure

1. [FACT] Only a Bill in either House of Parliament can initiate an Article 368 amendment; a State legislature cannot introduce it.
2. [FACT] A minister or private member may introduce it.
3. [FACT] Prior Presidential recommendation is unnecessary.
4. [FACT] Each House separately passes both majority limbs.
5. [FACT] Article 108 joint sitting is unavailable for rejection, disagreement or delay.
6. [FACT] If the proviso applies, State ratification must occur before presentation to the President.
7. [FACT] The President **shall give assent**; the Twenty-fourth Amendment made the command obligatory. The Bill is not returned or withheld like an ordinary Bill.
8. [FACT] On assent, the Constitution stands amended, subject to the Act's own commencement design.
9. [FACT] Article 368 creates no referendum and no special constitutional convention or constituent assembly.
10. [LIMIT] The Constitution fixes no general time limit for parliamentary passage or State ratification.

Dissolution precision

Article 107(5) says a Bill pending in Rajya Sabha that Lok Sabha has not passed does not lapse merely because Lok Sabha is dissolved. This narrow posture must not become the slogan "constitutional amendment Bills never lapse".

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The process uses ordinary institutions under extraordinary rules. **Evidence:** Either House may initiate, both Houses must independently pass the dual majority, Article 108 is unavailable and the President shall assent after the Twenty-fourth Amendment. **Analysis:** Independent bicameral passage prevents one House from converting electoral strength into unilateral constituent power. **Qualification:** The protected Rajya Sabha dissolution posture is narrow and does not answer every lapse scenario.

NAMED EVIDENCE

Articles 107(5), 108 and 368; Constitution (Twenty-fourth Amendment) Act, 1971.

PRELIMS TRAP

No prior Presidential recommendation, but mandatory Presidential assent at the end.

MAINS USE

Use as the procedural half of the 2025 GS-II demand.

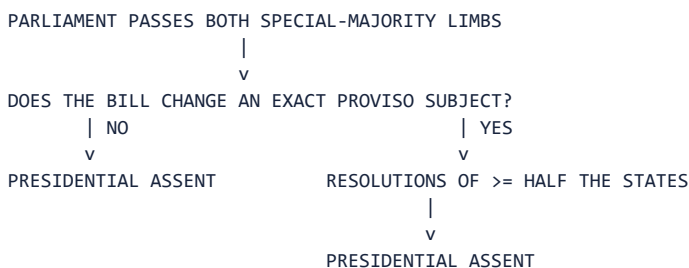
MINI RECAP

Either House can begin; both must separately finish; the President must assent.

SESSION 4 - FEDERAL RATIFICATION: EXACT SUBJECTS AND STATE ROLE

Stage: Core

VISUAL FIRST



Exact proviso cluster	Textual subjects
Named Articles	54, 55, 73, 162, 241 and 279A
Named Chapters	Chapter IV of Part V; Chapter V of Part VI; Chapter I of Part XI
Federal distribution	Any List in the Seventh Schedule
State voice	Representation of States in Parliament
Amending rule	Article 368 itself

The visual replaces vague "federal matters" language with the closed textual route.

DEFINITION / WHAT THIS IS CALLED

Federal ratification is additional consent by State legislatures for amendments changing the subjects expressly listed in the proviso to Article 368(2).

ANSWER-GRABBING LINE

State consent is constitutionally decisive but selectively triggered: the proviso protects the federal compact, not every provision with a federal consequence.

MUST-WRITE KEYWORDS

not less than one-half · resolutions · before Presidential assent · Articles 54/55/73/162/241/279A · named Chapters · Seventh Schedule · State representation

State procedure and limits

- [FACT] Parliament must first pass the Bill in both Houses by the dual special majority.
- [FACT] Ratification is by resolutions of the legislatures of not less than half the States.
- [FACT] The State resolution uses an ordinary/simple present-and-voting majority; Article 368 prescribes no special State threshold.
- [FACT] In a bicameral State the legislature's required Houses participate in the resolution; no joint sitting substitutes for failure.
- [FACT] The Governor's assent is not a separate requirement because the State act is ratification by resolution, not enactment of a State Bill.
- [FACT] States may ratify or refuse; they cannot introduce the Article 368 Bill or amend its text.
- [FACT] Union Territory legislatures do not count as States.
- [FACT] Article 368 sets no ratification deadline and is silent on withdrawal of a resolution already passed; avoid a categorical rule without authority.
- [LIMIT] Conditions of the Governor's office are not a proviso subject. Article 241 is separately named, so "Supreme Court and High Courts" is incomplete shorthand.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: State participation is a selective constitutional veto. **Evidence:** The proviso lists executive-power Articles, judiciary chapters, legislative distribution, State representation, Article 279A and Article 368. **Analysis:** These fields alter either the federal division or the States' national voice. **Qualification:** States cannot initiate or rewrite the Bill, and the Constitution requires half-not all or three-fourths-to ratify.

NAMED EVIDENCE

Article 368(2) proviso; Articles 54, 55, 73, 162, 241 and 279A; Seventh Schedule; One Hundred and First Amendment.

PRELIMS TRAP

Governor conditions are excluded; Article 162 and any Seventh Schedule List are included.

MAINS USE

Use for State-role, amendment federalism and procedure questions; cross-link wider federal theory to Topic 12.

MINI RECAP

Parliament proposes and passes; selected State legislatures ratify; the President assents.

SESSION 5 - ORDINARY LEGISLATIVE POWER, CONSTITUENT POWER AND ARTICLE 13

Stage: Core

VISUAL FIRST

Question	Ordinary law	Constitutional amendment
Source of power	Legislative entries/specific grants	Article 368 constituent power or a special non-368 route
Product	Statute	Constitutional Amendment Act
Primary review	Competence, Part III and other constitutional commands	Procedure plus basic-structure limit
Article 13	Directly controls ordinary "law"	Article 13(4) excludes Article 368 amendments after the Twenty-fourth Amendment
Basic structure	Not a free-standing invalidation formula	Direct substantive limit on amendment

The table shows why the same constitutional value operates through different legal tests.

DEFINITION / WHAT THIS IS CALLED

Ordinary legislative power governs within the existing Constitution. **Constituent power** formally alters constitutional text but remains a Constitution-created and limited power.

ANSWER-GRABBING LINE

Article 13 disciplines ordinary law directly; basic structure disciplines constitutional amendment, while ordinary statutes still require a concrete constitutional defect.

MUST-WRITE KEYWORDS

legislative competence · Article 13(2) · Article 13(4) · Article 368(3) · constituent power · basic-structure ceiling · express constitutional hook

Relationship and consequence

- [FACT] Article 13(2) invalidates State law that takes away or abridges Fundamental Rights to the extent of contravention.
- [FACT] *Shankari Prasad* and *Sajjan Singh* treated constitutional amendments as outside "law" in Article 13.
- [FACT] *Golak Nath* treated amendment as law, restricting future Fundamental Rights amendment through prospective overruling.
- [FACT] The Twenty-fourth Amendment inserted Article 13(4) and Article 368(3), expressly excluding amendments under Article 368 from Article 13 and affirming constituent power.
- [FACT] *Kesavananda Bharati* upheld broad amendment power but replaced an absolute rights lock with the basic-structure limit.
- [ANALYSIS] Fundamental Rights are amendable, but their essential contribution to constitutional identity cannot be destroyed.
- [LIMIT] A court reviewing an ordinary statute must identify competence, Part III or another constitutional violation; the basic-structure label alone is insufficient after *Anjum Kadari*.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 13 and Article 368 answer different questions. **Evidence:** *Golak Nath* used Article 13 against future amendments; the Twenty-fourth Amendment excluded Article 368 amendments; *Kesavananda* retained review through basic structure. **Analysis:** Parliament recovered wide constituent capacity without acquiring sovereign power. **Qualification:** Ordinary laws remain fully reviewable, but through concrete constitutional provisions rather than a free-standing amendment doctrine.

NAMED EVIDENCE

Articles 13(2), 13(4), 368(1) and 368(3); *Shankari Prasad*; *Golak Nath*; Twenty-fourth Amendment; *Kesavananda Bharati*; *Anjum Kadari*.

PRELIMS TRAP

"Not law under Article 13" does not mean "not subject to any constitutional review".

MAINS USE

Use to explain how the Court moved from rights amendability to constitutional identity.

MINI RECAP

Article 13 is not the present amendment test; basic structure is.

SESSION 6 - FROM SHANKARI PRASAD TO THE TWENTY-FIFTH AMENDMENT

Stage: Core

VISUAL FIRST

1951 SHANKARI PRASAD -> amendment not Article 13 law; First Amendment upheld
1964/65 SAJJAN SINGH -> rule reaffirmed; separate opinions raise structural doubts
1967 GOLAK NATH -> amendment treated as law; FR protected prospectively
1971 24TH AMENDMENT -> constituent power + Article 13 exclusion + President shall assent
1971 25TH AMENDMENT -> property changes + Article 31C for Article 39(b)/(c)
1973 KESAVANANDA -> wide amendability retained; destructive effect prohibited

The timeline is a Parliament-Court dialogue, not a disconnected case list.

DEFINITION / WHAT THIS IS CALLED

The **pre-Kesavananda amendability controversy** asked whether Parliament could alter Fundamental Rights and whether an amendment counted as "law" under Article 13.

ANSWER-GRABBING LINE

The doctrine emerged from a constitutional dialogue: judicial limits triggered amendment responses, and Kesavananda converted the conflict into a synthesis of wide power and preserved identity.

MUST-WRITE KEYWORDS

Shankari Prasad · Sajjan Singh · Golak Nath · prospective overruling · Twenty-fourth Amendment · Twenty-fifth Amendment · Article 31C

Exact propositions

Authority	Holding or response	Qualification
<i>Shankari Prasad</i> (1951)	Amendment under Article 368 was not "law" under Article 13(2); Fundamental Rights could be amended	Upheld the First Amendment
<i>Sajjan Singh</i> (decision 1964; reported 1965)	Reaffirmed <i>Shankari Prasad</i> and upheld the Seventeenth Amendment	Separate opinions of Mudholkar and Hidayatullah JJ raised early doubts about basic features
<i>I.C. Golak Nath</i> (1967)	Amendment treated as Article 13 law; Parliament could not abridge Fundamental Rights prospectively	Earlier amendments were not invalidated because the Court used prospective overruling
Twenty-fourth Amendment (1971)	Made constituent power express, inserted Article 13(4)/368(3), and made Presidential assent mandatory	Direct constitutional response to <i>Golak Nath</i>
Twenty-fifth Amendment (1971)	Replaced "compensation" with "amount" in the property framework and inserted Article 31C for Article 39(b)/(c) laws	The attempted conclusive exclusion of nexus review did not survive <i>Kesavananda</i>

Prospective overruling

Prospective overruling changes the governing rule for the future while protecting completed past legal effects. It is a temporal remedy, distinct from **severability**, which asks which parts of a legal text can continue after an offending provision is removed.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The case sequence alternated judicial rule and parliamentary response. **Evidence:** Golak Nath used Article 13 prospectively; the Twenty-fourth Amendment restored express constituent power; the Twenty-fifth inserted Article 31C. **Analysis:** The conflict concerned both social-reform capacity and constitutional supremacy. **Qualification:** Kesavananda did not simply restore Shankari Prasad; it added a substantive identity limit.

NAMED EVIDENCE

First, Seventeenth, Twenty-fourth and Twenty-fifth Amendments; Articles 13, 31C and 368; the five authorities in the timeline.

PRELIMS TRAP

Golak Nath used prospective overruling; it did not propound the basic-structure doctrine.

MAINS USE

Use as the chronology paragraph before explaining the Kesavananda settlement.

MINI RECAP

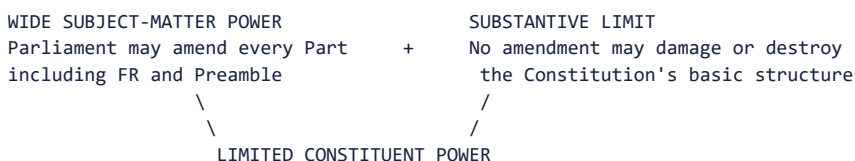
Early amendability -> rights lock -> amendment response -> identity-based compromise.

SESSION 7 - KESAVANANDA BHARATI: THE LIMITED HOLDING AND ITS REMEDIAL LOGIC

Stage: Core

VISUAL FIRST

WHAT THE 13-JUDGE BENCH SETTLED (7:6)



NOT SETTLED AS ONE CLOSED LIST -> individual opinions supplied overlapping features

The holding concerns the nature and limit of amendment, not one unanimous feature catalogue.

DEFINITION / WHAT THIS IS CALLED

The **basic-structure doctrine** is the rule that Article 368 permits amendment of every constitutional provision but not damage or destruction of the Constitution's basic framework or identity.

ANSWER-GRABBING LINE

Kesavananda rejected both constitutional petrification and parliamentary absolutism: every Part is amendable, but the Constitution must remain recognisably itself.

MUST-WRITE KEYWORDS

13 judges · 7:6 · 24 April 1973 · every Part amendable · damage/destroy · basic structure · identity · non-exhaustive

What the Court held

- [FACT] The thirteen-judge Bench decided the controlling issue by 7:6 on 24 April 1973.
- [FACT] Parliament may amend any Part, including Fundamental Rights and the Preamble.
- [FACT] The Twenty-fourth Amendment was upheld subject to the substantive limit.
- [FACT] Parliament may not damage, destroy or abrogate the Constitution's basic structure.
- [FACT] The original Article 31C protection connected to Article 39(b)/(c) substantially survived, but the clause attempting to make the legislative declaration conclusive against judicial inquiry did not.

- [ANALYSIS] The legal question became one of **degree and effect**: does the amendment preserve the feature while regulating it, or disable the feature's constitutional function?

What the Court did not hold

- It did not make every word of Fundamental Rights unamendable.
- It did not hold the Preamble alone to be the basic structure.
- It did not publish one unanimous exhaustive list.
- It did not apply the doctrine as a free-standing formula against all ordinary statutes.
- It did not forbid transformative constitutional reform.

Severability

Where valid and invalid parts can operate independently, the offending part may be removed while the remainder survives. The treatment of Article 31C demonstrates why amendment review need not be all-or-nothing.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Kesavananda preserved broad amendment while constitutionalising an effect-based limit. **Evidence:** The 7:6 majority upheld power over every Part but rejected destructive change; the Article 31C disposition preserved a bounded protection while refusing conclusive exclusion of review. **Analysis:** This allows social transformation without constitutional replacement. **Qualification:** Feature attribution must come from specific opinions and later cases, not a fictional unanimous list.

NAMED EVIDENCE

Kesavananda Bharati v. State of Kerala (1973); Twenty-fourth and Twenty-fifth Amendments; Articles 13, 31C and 368.

PRELIMS TRAP

"Every Part is amendable" and "basic structure cannot be destroyed" are simultaneous propositions.

MAINS USE

Use as the core holding in every Article 368 answer.

MINI RECAP

Wide power over text, limited power over constitutional identity.

SESSION 8 - INDIRA GANDHI, THE FORTY-SECOND AMENDMENT AND MINERVA MILLS

Stage: Core

VISUAL FIRST

39TH AMENDMENT -> election-dispute insulation

|

v

INDIRA NEHRU GANDHI (1975)

free and fair elections + rule of law + judicial review

|

v

42ND AMENDMENT (1976)

SECTION 4: Article 31C expanded to all DPSPs

SECTION 55: Article 368(4)-(5), review exclusion + unlimited power

|

v

MINERVA MILLS (1980)

sections 4 and 55 invalid -> FR-DPSP harmony + judicial review + limited power

The sequence shows application, attempted override and doctrinal reinforcement.

DEFINITION / WHAT THIS IS CALLED

The **self-enlargement problem** arises when an amending body tries to remove review of its own power or declare that power unlimited.

ANSWER-GRABBING LINE

Minerva Mills exposed the constitutional contradiction in self-enlargement: a limited power cannot validly erase the limitation that constitutes it.

MUST-WRITE KEYWORDS

Thirty-ninth Amendment · free and fair elections · Forty-second Amendment section 4 · section 55 · Article 368(4)-(5) · FR-DPSP harmony · limited amending power

Indira Nehru Gandhi (1975)

- [FACT] The Thirty-ninth Amendment attempted to insulate specified high-office election disputes from ordinary judicial adjudication.
- [FACT] The Court invalidated the offending part and used basic features including free and fair elections, rule of law and judicial review.
- [LIMIT] The case involved the Thirty-ninth, not the Forty-fourth, Amendment.
- [ANALYSIS] Democracy includes legally contestable elections, not only the result produced by a current majority.

Forty-second Amendment sections 4 and 55

- [FACT] **Section 4** expanded Article 31C protection from Article 39(b)/(c) to all Directive Principles.
- [FACT] **Section 55** inserted Article 368(4), excluding review of amendments, and Article 368(5), declaring no limitation on constituent power.

Minerva Mills (1980)

- [FACT] The Court invalidated sections 4 and 55.
- [FACT] Limited amending power and judicial review are basic features.
- [FACT] Harmony and balance between Fundamental Rights and Directive Principles form part of the constitutional structure; neither Part may be given absolute primacy through destructive amendment.
- [ANALYSIS] The decision demonstrates that the procedure used to amend Article 368 cannot make the power legally sovereign.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Later amendments tested whether Parliament could neutralise the Kesavananda limit. **Evidence:** The Thirty-ninth Amendment's election immunity failed in *Indira Gandhi*; sections 4 and 55 of the Forty-second Amendment failed in *Minerva Mills*. **Analysis:** Judicial review, fair political competition and rights-governance balance protect the conditions of constitutional democracy. **Qualification:** The Court struck targeted destructive provisions, not the entire idea of election regulation, Directive Principles or constitutional amendment.

NAMED EVIDENCE

Thirty-ninth and Forty-second Amendments; Articles 31C and 368(4)-(5); *Indira Nehru Gandhi v. Raj Narain*; *Minerva Mills v. Union of India*.

PRELIMS TRAP

Section 4 concerned Article 31C; section 55 concerned Article 368(4)-(5).

MAINS USE

Use to prove why Parliament cannot enlarge limited power into absolute power.

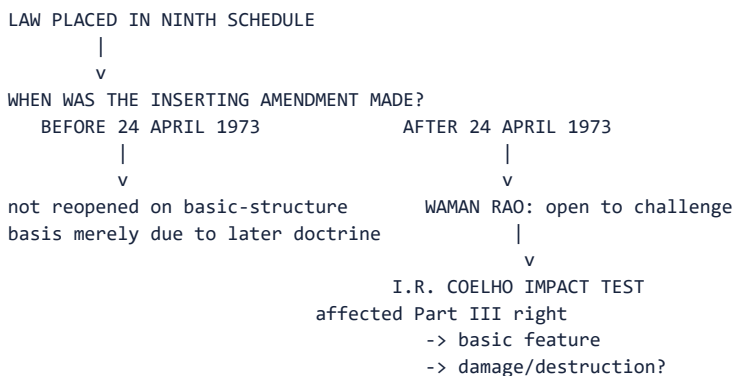
MINI RECAP

Election immunity failed; unlimited and unreviewable amending power failed.

SESSION 9 - NINTH SCHEDULE: WAMAN RAO, I.R. COELHO AND EFFECT-BASED REVIEW

Stage: Core

VISUAL FIRST



The test turns on the inserting amendment's date and constitutional effect.

DEFINITION / WHAT THIS IS CALLED

Ninth Schedule review examines whether a constitutional amendment granting Article 31B immunity after the Kesavananda cutoff damages basic structure through its impact on protected rights.

ANSWER-GRABBING LINE

Article 31B is a shield against ordinary Part III invalidation, not a post-1973 vault against the Constitution's basic structure.

MUST-WRITE KEYWORDS

Article 31A · Article 31B · Ninth Schedule · 24 April 1973 · Waman Rao · I.R. Coelho · impact test · reviewable not automatically void

Architecture and cutoff

- [FACT] The First Amendment inserted Article 31B and the Ninth Schedule in 1951.
- [FACT] Article 31A protects specified categories; Article 31B validates listed laws. The mechanisms are related but distinct.
- [FACT] *Waman Rao* (decision 1980, reported 1981) fixed **24 April 1973** as the prospective dividing line for amendments inserting laws.
- [FACT] Pre-cutoff insertions were not reopened on the later basic-structure ground; post-cutoff insertions are open to challenge.

I.R. Coelho (2007)

- [FACT] The nine-judge Bench unanimously rejected blanket post-cutoff immunity.

- [FACT] Review proceeds through the effect on Part III rights whose essence forms part of basic structure.
- [ANALYSIS] The court moves from the right affected to the underlying feature and then to the degree of damage produced by immunisation.
- [LIMIT] A post-1973 insertion is **reviewable**, not automatically invalid; the damaging effect must be established.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Ninth Schedule protection is temporally and substantively limited. **Evidence:** Waman Rao supplies the cutoff; Coelho supplies the rights-to-feature impact test. **Analysis:** Parliament cannot use Article 31B to achieve indirectly what Article 368 cannot do directly. **Qualification:** Judicial review preserves legislative space because only basic-structure damage, not every rights abridgment, triggers invalidity.

NAMED EVIDENCE

First Amendment; Articles 31A and 31B; *Waman Rao v. Union of India*; *I.R. Coelho v. State of Tamil Nadu*.

PRELIMS TRAP

The cutoff is 24 April 1973, and reviewability is not automatic invalidity.

MAINS USE

Use as evidence of effect-based review and constitutional supremacy.

MINI RECAP

Date -> affected right -> basic feature -> damaging effect -> remedy.

SESSION 10 - BASIC FEATURES: CASE ATTRIBUTION, NOT AN EXHAUSTIVE LIST

Stage: Core

VISUAL FIRST

Feature or principle	Principal doctrinal source/use	Safe exam statement
Constitutional supremacy; republican-democratic form; secularism; federalism; separation of powers	Overlapping <i>Kesavananda</i> opinions	Foundational illustrations, not one unanimous list
Free and fair elections; rule of law; review	<i>Indira Nehru Gandhi</i>	Electoral power remains legally contestable
Limited amending power; judicial review; FR-DPSP harmony	<i>Minerva Mills</i>	Neither amendment power nor one constitutional Part becomes absolute
Federalism and secularism	<i>S.R. Bommai</i>	Recognised in the Article 356 context; not an amendment invalidation itself
Articles 32 and 226/227 review	<i>L. Chandra Kumar</i>	Constitutional-court review cannot be wholly excluded by tribunals
Rights/basic-structure impact	<i>I.R. Coelho</i>	Post-cutoff Ninth Schedule review is effect-based
Judicial independence	NJAC judgment	Appointments reform cannot destroy decisional independence

The matrix attributes propositions to cases and keeps holding, context and later application distinct.

DEFINITION / WHAT THIS IS CALLED

A **basic feature** is a constitutionally grounded element whose destruction would alter the identity of the Constitution; identification is case-specific and non-exhaustive.

ANSWER-GRABBING LINE

A credible basic-structure answer names the feature, its constitutional foundation, the case recognising it and the destructive effect alleged.

MUST-WRITE KEYWORDS

illustrative · non-exhaustive · case-attributed · holding · separate opinion · context · degree and effect · constitutional foundation

Attribution discipline

- [FACT] Different judges in *Kesavananda* gave overlapping formulations; no single closed list was unanimously enacted by judgment.
- [FACT] Later cases developed particular features in particular contexts.
- [LIMIT] *S.R. Bommai* recognised secularism and federalism in Article 356 review; it was not itself a case striking a constitutional amendment.
- [LIMIT] *L. Chandra Kumar* protects constitutional-court review while permitting tribunals as institutions of first instance.
- [LIMIT] NJAC concerned the Ninety-ninth Amendment and dependent appointments framework; it does not make every court-related statute invalid.
- [ANALYSIS] A feature may be adjusted without being destroyed. The review question is functional effect, not verbal contact.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The list evolves through attributed holdings. **Evidence:** *Indira Gandhi* links free elections and review; *Minerva Mills* links limited power and balance; *Bommai* reinforces secularism/federalism; NJAC protects judicial independence.

Analysis: Attribution makes the doctrine reasoned rather than impressionistic. **Qualification:** Later recognition in a non-amendment context must not be misdescribed as invalidation of an amendment.

NAMED EVIDENCE

The cases in the matrix; Articles 32, 226, 227, 323A and 323B where relevant.

PRELIMS TRAP

The Constitution does not textually define a closed basic-structure catalogue.

MAINS USE

Use to add precise features without list-dumping.

MINI RECAP

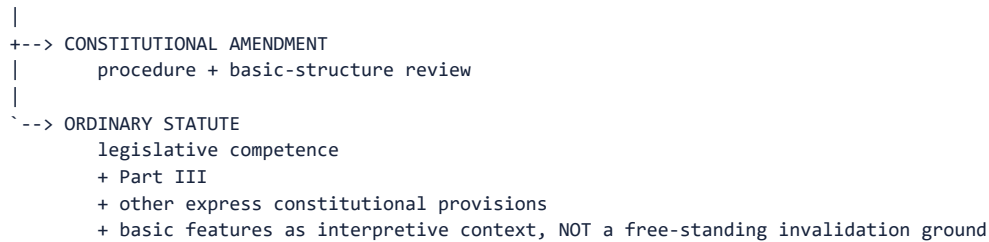
Feature + source + context + destructive effect = defensible doctrine use.

SESSION 11 - ANJUM KADARI AND THE ORDINARY-LAW BOUNDARY

Stage: Core

VISUAL FIRST

CHALLENGED MEASURE



The same constitutional value can matter in both fields, but the legal cause of invalidity differs.

DEFINITION / WHAT THIS IS CALLED

The **ordinary-law boundary** prevents the amendment-specific basic-structure doctrine from becoming an undefined general test for statutes.

ANSWER-GRABBING LINE

After Anjum Kadari, "the Act violates basic structure" is incomplete; the answer must identify the Articles or competence rule that the Act violates.

MUST-WRITE KEYWORDS

2024 INSC 831 · ordinary legislation · legislative competence · Part III · another constitutional provision · free-standing test · interpretive context

Controlling proposition

- [FACT] *Anjum Kadari* upheld the distinction between constitutional amendment and ordinary legislation.
- [FACT] An ordinary law may be invalidated for lack of legislative competence, violation of Fundamental Rights or breach of another constitutional provision.
- [FACT] It cannot be invalidated solely because a court labels its object inconsistent with an undefined basic feature.
- [ANALYSIS] Secularism, federalism, judicial independence or separation of powers may still guide interpretation and identify relevant constitutional provisions.
- [LIMIT] The judgment does not weaken amendment review, post-1973 Ninth Schedule review or ordinary rights review.

Why the distinction matters

An amendment changes the higher legal framework and therefore faces a doctrine protecting constitutional identity. A statute operates within that framework and must be tested against the written distribution of powers, rights and institutional commands. Collapsing the two would let judges create an open-ended statutory veto untethered from enacted constitutional text.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Basic structure directly limits constitutional amendments, not statutes as a free-standing formula. **Evidence:** *Anjum Kadari* requires competence, Part III or another constitutional hook. **Analysis:** The rule preserves written-constitutional review while avoiding impressionistic invalidation of ordinary policy. **Qualification:** Basic features remain relevant as interpretive principles and in locating the concrete Article breached.

NAMED EVIDENCE

Anjum Kadari v. Union of India, 2024 INSC 831, judgment dated 5 November 2024; Articles 14, 21, 21A and 30 in the case context.

PRELIMS TRAP

"Basic structure does not apply directly to statutes" does not mean statutes are immune from constitutional review.

MAINS USE

Use to show doctrinal self-restraint and distinguish amendment review from ordinary-law review.

Amendment -> basic structure; statute -> express constitutional defect.

Stage: Synthesis

```

PROPOSAL/BILL -> HOUSE THRESHOLDS -> STATE RATIFICATION IF REQUIRED -> PRESIDENTIAL ASSENT
      |               |               |               |
may fail entirely   no joint sitting    only exact proviso    Amendment Act
                                                              may commence now/later
                                                                |
                                                                v
OPERATION MAY STILL DEPEND ON
express constitutional conditions

```

The lifecycle prevents a Bill, an enacted amendment and an operational rule from being treated as the same status.

Status discipline distinguishes proposal, parliamentary passage, ratification, assent, commencement and operational effect.

Constitutional change has a legal lifecycle: a defeated proposal proves only procedure, while commencement does not automatically satisfy later operational conditions.

defeated Bill · no legal effect · 298/230/528 · dual denominator · S.O. 1922(E) · commencement · Article 334A · census figures · delimitation · operation

- [CURRENT] The Bill was introduced on 16 April and negatived on 17 April 2026.
- [CURRENT] In the division, 298 ayes exceeded the Lok Sabha total-membership majority of 272 but fell below two-thirds of 528 present and voting, which required 352.
- [FACT] The Bill failed in the first House; State ratification and Presidential assent never arose.
- [LIMIT] Its proposed changes, including seat-ceiling figures, are not law. The division is not precedent and does not settle whether a hypothetical future text would require ratification.

- [FACT] The Act inserted Articles 330A, 332A and 334A and amended Article 239AA.
- [CURRENT] S.O. 1922(E) appointed 16 April 2026 as the commencement date.
- [FACT] Article 334A makes the reservation provisions take effect after publication of relevant figures of the first census taken after commencement and delimitation for that purpose.
- [CURRENT] On the checked sources, the framework has commenced but the reservation is not operational through those constitutional gates.
- [LIMIT] Do not invent an implementation election, census-publication date, delimitation date or end date.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Amendment status must be disaggregated. **Evidence:** The defeated 2026 Bill illustrates failure of the two-thirds limb; S.O. 1922(E) commenced the One Hundred and Sixth Amendment, while Article 334A retains later conditions. **Analysis:** Procedure and legal effect occur at different stages. **Qualification:** A proposal's contents and a commenced framework cannot be presented as currently operative outcomes.

NAMED EVIDENCE

Article 368; Constitution (One Hundred and Sixth Amendment) Act, 2023; Article 334A; S.O. 1922(E); Constitution (One Hundred and Thirty-first Amendment) Bill, 2026 division.

PRELIMS TRAP

Enactment, commencement and operation are three different labels.

MAINS USE

Use as a current illustration in procedural-limit answers, not as a substitute for doctrine.

MINI RECAP

Failed Bill = no change; commenced Act may still await operational conditions.

SESSION 13 - DEMOCRATIC LEGITIMACY, COUNTER-MAJORITARIANISM AND SELF-RESTRAINT

Stage: Synthesis

VISUAL FIRST

Critique	Constitutional defence	Restraint response
Doctrine is not textually enumerated	Article 368 grants amendment, not destruction	Identify a feature through text, structure and precedent
Judges can override super-majorities	Democracy includes future elections, opposition, rights and federal voice	Require actual functional damage, not policy disagreement
Feature list is uncertain	Case-by-case development adapts to new threats	Attribute each feature and confront contrary authority
Judicial finality may become supremacy	Review enforces constitutional supremacy	Use reasoned, narrow remedies and severability

The strongest evaluation neither romanticises judicial review nor treats electoral majority as legal sovereignty.

DEFINITION / WHAT THIS IS CALLED

The **counter-majoritarian difficulty** asks why unelected judges may invalidate change passed by elected constitutional majorities; the reply rests on constitutional rather than parliamentary supremacy.

ANSWER-GRABBING LINE

Basic structure is defensible as disciplined judicial review, but loses legitimacy when an undefined feature becomes a judicial policy veto.

MUST-WRITE KEYWORDS

constitutional supremacy · counter-majoritarian · democratic self-destruction · uncertainty · judicial self-restraint · actual damage · case attribution · narrow remedy

Evaluation

- [ANALYSIS] The critique is real because the doctrine is judicially inferred, open-ended and capable of defeating national and State super-majorities.
- [ANALYSIS] Yet electoral legitimacy is not exhausted by the present majority. Constitutional democracy protects the rules of future competition, minority liberty, federal participation and independent adjudication.

- [FACT] *Minerva Mills* supplies the strongest logical defence: limited power cannot make itself unlimited and unreviewable.
- [ANALYSIS] Judicial review becomes supremacy if courts substitute institutional preference for a demonstrated constitutional limit.
- [ANALYSIS] A disciplined test asks: What feature? What text and precedent? What function does it perform? How does the amendment damage that function? Can the defect be severed?
- [LIMIT] Courts should distinguish regulation, rebalancing and experimentation from disabling destruction.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The doctrine has both democratic cost and constitutional necessity. **Evidence:** A 7:6 Kesavananda majority created an open test, but section 55 of the Forty-second Amendment shows why self-enlargement needs an external check. **Analysis:** Review protects the conditions under which democracy can continue. **Qualification:** Legitimacy depends on transparent attribution, a high damage threshold and remedial modesty.

NAMED EVIDENCE

Kesavananda Bharati; Forty-second Amendment section 55; *Minerva Mills*; *I.R. Coelho*; *Anjum Kadari*.

PRELIMS TRAP

Judicial review and judicial supremacy are not synonyms.

MAINS USE

Use for "guardian or overreach", legitimacy and reform questions.

MINI RECAP

Defend the doctrine conditionally: constitutional limit, real damage, reasoned restraint.

SESSION 14 - ANSWER EXECUTION, PYQ ROUTES AND THE FINAL DOCTRINAL SPINE

Stage: Synthesis

VISUAL FIRST

QUESTION DEMAND

```

|
+--> PROCEDURE?  route -> thresholds -> State consent -> assent
+--> DOCTRINE?   timeline -> Kesavananda holding -> later application
+--> NINTH SCHEDULE? date -> right -> feature -> effect
+--> LEGITIMACY? critique -> defence -> restraint
`--> ORDINARY LAW? competence/Part III/other Article, not free-standing basic structure

```

CONCLUSION: Parliament may amend every Part, but cannot destroy constitutional identity.

The visual converts the complete topic into five answer routes.

DEFINITION / WHAT THIS IS CALLED

An **answer spine** is the shortest complete logical sequence that satisfies the directive without fact-dumping.

ANSWER-GRABBING LINE

India's amending power is limited twice: procedurally in the manner of exercise and substantively in the constitutional effect it may produce.

MUST-WRITE KEYWORDS

procedural limit · substantive limit · limited constituent power · exact proviso · case-attributed feature · effect test · severability · qualified conclusion

Mark-scaled architecture

Marks	Structure	Evidence density
10 / 150 words	Thesis -> three routes or one doctrine issue -> 2-3 named units -> qualified verdict	One Article cluster + two cases/examples
15 / 250 words	Define -> procedure/doctrine subheads -> 4-6 named units -> critique/qualification -> verdict	Article 368 + 3-4 cases/amendments
20 / 250 words	Constitutional theory -> chronology/mechanism -> applications -> criticism/defence -> restraint/remedy -> conclusion	5-8 precise units linked to claims

Direct PYQ routes

- **2019 GS-II Q12:** Article 368 -> Twenty-fourth Amendment -> Kesavananda -> Forty-second Amendment section 55 -> Minerva Mills -> limited power cannot make itself absolute.
- **2025 GS-II Q12:** procedure and substance under separate headings -> either House -> dual majority -> no joint sitting -> exact State proviso -> President shall assent -> basic structure -> current arithmetic illustration.

Objective trap wall

- Part XX, not Part XI.
- Addition, variation and repeal-all three.
- Article 169 State resolution threshold is not an Article 368 amendment.
- No prior Presidential recommendation; mandatory assent later.
- No joint sitting, referendum or special constituent body.
- Total membership is not effective strength.
- Ratification is for exact proviso subjects, by not less than half the States.
- Golak Nath used prospective overruling; Kesavananda created basic structure.
- Thirty-ninth, not Forty-fourth, Amendment in *Indira Gandhi*.
- Section 4/section 55 distinction in the Forty-second Amendment.
- Post-1973 Ninth Schedule entries are reviewable, not automatically invalid.
- Ordinary statutes require a concrete constitutional defect after *Anjum Kadari*.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Parliament's authority is broad but constitutionally bounded. **Evidence:** Article 368 prescribes entrenched procedure; Kesavananda limits destructive effect; Minerva Mills rejects self-enlargement; Anjum Kadari preserves the ordinary-law boundary. **Analysis:** The structure permits reform while protecting democratic continuity and institutional checks. **Qualification:** Courts must not convert an open doctrine into an unreasoned policy veto.

NAMED EVIDENCE

Articles 13, 31B, 31C and 368; Twenty-fourth, Twenty-fifth, Thirty-ninth and Forty-second Amendments; the direct 2019 and 2025 Mains PYQs.

PRELIMS TRAP

Do not answer a procedural question with only case law or a basic-structure question with only majority arithmetic.

MAINS USE

Use this session for final revision and timed answer planning.

MINI RECAP

Route -> procedure -> doctrine -> application -> qualification -> constitutional-identity verdict.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCD. Every option has a substantive question-specific explanation and every question ends with a distinct Examiner trap.

BASIC MCQS / REMEDIATION

Q1. With reference to Article 368, which formulation is the most accurate?

- A. Parliament exercises constituent power to amend by addition, variation or repeal, subject to the prescribed procedure and the basic-structure ceiling.
- B. Parliament becomes legally sovereign whenever half the States ratify an amendment.
- C. Presidential assent makes a constitutional amendment immune from judicial review.
- D. Article 368 is ordinary legislative power confined to provisions outside Part III.

Answer: A.

- **A:** Correct: Article 368(1) uses "constituent power" and the forms addition, variation and repeal; Kesavananda Bharati and Minerva Mills supply the substantive limit.
- **B:** Incorrect: State ratification is required only for the proviso subjects, and even a ratified amendment remains subordinate to the Constitution's basic structure.
- **C:** Incorrect: Assent completes the formal process, but courts may still examine procedural compliance and basic-structure damage.
- **D:** Incorrect: Article 368 can reach every Part, including Fundamental Rights, while ordinary legislative power operates on a different constitutional footing.

Examiner trap: Constituent power is wider than ordinary law-making, but it is not sovereign or unlimited.

Q2. In a House with a total membership of 245, 180 members are present and voting on an Article 368 Bill. What is the minimum number of affirmative votes needed?

- A. 120, because only two-thirds of members present and voting matters.
- B. 123, because both the total-membership majority and the two-thirds present-and-voting limb must be satisfied.
- C. 164, because two-thirds of the total membership is required.
- D. 91, because a majority of members present is sufficient.

Answer: B.

- **A:** Incorrect: 120 reaches two-thirds of 180 but fails the separate requirement of a majority of the House's total membership.
- **B:** Correct: A majority of 245 requires 123, while two-thirds of 180 is 120; the higher simultaneous threshold controls.
- **C:** Incorrect: Article 368 does not demand two-thirds of the full House strength; it combines two differently calculated limbs.
- **D:** Incorrect: An ordinary present-and-voting majority cannot substitute for either constitutional threshold.

Examiner trap: Calculate both limbs independently and use the higher minimum; "special majority" is not one denominator.

Q3. Which statement correctly describes creation or abolition of a State Legislative Council?

- A. Parliament and the State Assembly both act by an ordinary present-and-voting majority.
- B. The Governor creates or abolishes the Council after Parliament approves a resolution.
- C. The State Assembly first passes the Article 169 resolution by its prescribed special majority; Parliament then enacts an ordinary law outside Article 368.
- D. The change always requires an Article 368 amendment ratified by half the States.

Answer: C.

- **A:** Incorrect: Parliament's eventual law is ordinary, but the initiating Assembly resolution needs a majority of total membership plus two-thirds present and voting.

- **B:** Incorrect: The Governor cannot create or abolish a Legislative Council by executive action.
- **C:** Correct: Article 169 deliberately combines a special initiating resolution in the State Assembly with a parliamentary law not deemed an Article 368 amendment.
- **D:** Incorrect: Legislative Council creation or abolition follows Article 169, not the federal-ratification proviso.

Examiner trap: "Simple-majority constitutional change" describes Parliament's law here, not every prior procedural step.

Q4. Which group lies entirely within the State-ratification proviso to Article 368?

- A. Article 241, Fundamental Duties and the Second Schedule
- B. Articles 54 and 55, plus conditions of the Governor's office
- C. Chapter IV of Part V, Article 324 and the Tenth Schedule
- D. Article 279A, Chapter I of Part XI and representation of States in Parliament

Answer: D.

- **A:** Incorrect: Article 241 is included, but Part IVA and the Second Schedule are not named proviso subjects as such.
- **B:** Incorrect: Articles 54 and 55 are included; conditions of the Governor's office are not.
- **C:** Incorrect: The Union Judiciary chapter is included, whereas Article 324 and the Tenth Schedule do not independently appear in the list.
- **D:** Correct: The GST Council article, the legislative-relations chapter and State representation are all expressly protected by the additional federal-consent stage.

Examiner trap: Use the exact Articles, Chapters, Lists and representation limb; loose "federal matters" shorthand over-includes.

Q5. A Constitution Amendment Bill is pending in Rajya Sabha and has not been passed by Lok Sabha when Lok Sabha is dissolved. Which statement is correct?

- A. It does not lapse merely because of the dissolution, under the narrow rule in Article 107(5).
- B. It automatically lapses because both Houses must exist simultaneously throughout the process.
- C. It must be sent to a joint sitting after the new Lok Sabha is constituted.
- D. Rajya Sabha may send it directly to the President after the dissolution.

Answer: A.

- **A:** Correct: Article 107(5) protects a Bill pending in Rajya Sabha that Lok Sabha has not passed from lapse merely on dissolution.
- **B:** Incorrect: Dissolution does not erase this specifically protected Rajya Sabha posture.
- **C:** Incorrect: Article 108 joint-sitting machinery cannot rescue or complete a constitutional amendment.
- **D:** Incorrect: Passage by both Houses remains indispensable; Rajya Sabha cannot bypass Lok Sabha or Presidential-stage prerequisites.

Examiner trap: Do not generalise the narrow Rajya Sabha rule into the false slogan that amendment Bills never lapse.

Q6. Consider the following statements about introduction of a Constitution Amendment Bill: 1. It may be introduced in either House. 2. It may be introduced by a private member. 3. It needs prior Presidential recommendation. Which are correct?

- A. 2 and 3 only
- B. 1 and 2 only
- C. 1, 2 and 3
- D. 1 only

Answer: B.

- **A:** Incorrect: A private member may introduce the Bill, but prior Presidential recommendation is not a constitutional condition.
- **B:** Correct: Either House and either ministerial or private-member sponsorship are permitted.
- **C:** Incorrect: Statement 3 wrongly imports a recommendation requirement from other legislative categories.
- **D:** Incorrect: This omits the valid private-member route recognised for amendment Bills.

Examiner trap: Separate the absent recommendation at introduction from the President's mandatory assent at the end.

Q7. Which combination is most defensibly classified as constitutionally authorised ordinary-law change outside Article 368?

- A. Amending Fundamental Rights, Directive Principles and the Preamble
- B. Rewriting the Union Judiciary chapter, altering Article 279A and changing Article 54
- C. Forming a new State under Articles 3-4, regulating citizenship under Article 11 and amending the Fifth Schedule through its express mechanism
- D. Changing Article 368, State representation in Parliament and List I

Answer: C.

- **A:** Incorrect: These entrenched constitutional fields ordinarily require Article 368, subject to the relevant route.
- **B:** Incorrect: Each item falls within the Article 368 proviso's federal-consent architecture.
- **C:** Correct: Each example rests on a separate constitutional authorisation for ordinary law or a non-Article-368 deeming mechanism.
- **D:** Incorrect: Article 368 itself, State representation and any Seventh Schedule List require the additional State-ratification route.

Examiner trap: A constitutional effect does not automatically make the measure an Article 368 amendment; inspect the enabling provision.

Q8. Which statement best describes institutional features absent from India's Article 368 process?

- A. A referendum is mandatory, but a constituent convention is optional.
- B. A joint sitting is available, though State ratification is not.
- C. A special constituent body must approve every amendment before Parliament votes.
- D. There is no referendum, no special constituent convention and no joint sitting to resolve House disagreement.

Answer: D.

- **A:** Incorrect: Article 368 contains no referendum stage of any kind.
- **B:** Incorrect: Joint sitting is unavailable, while State ratification is indispensable for the listed proviso subjects.
- **C:** Incorrect: The ordinary Houses of Parliament exercise the constituent function under special constitutional rules.
- **D:** Correct: India entrusts amendment to Parliament and, selectively, State legislatures without direct popular ratification or a separate amending assembly.

Examiner trap: Do not confuse Parliament acting in a constituent capacity with the creation of a separate constituent body.

Q9. Which proposition belongs to Shankari Prasad (1951)?

- A. A constitutional amendment was not "law" under Article 13(2), so Parliament could amend Fundamental Rights.
- B. Fundamental Rights were prospectively placed beyond amendment.
- C. The basic-structure doctrine limited constituent power.
- D. Article 368(4) and (5) were void because amending power is limited.

Answer: A.

- **A:** Correct: The Court distinguished constitutional amendment from ordinary "law" under Article 13 and upheld the First Amendment.
- **B:** Incorrect: The prospective rights lock was the position adopted later in Golak Nath.
- **C:** Incorrect: Basic structure emerged in Kesavananda Bharati, not in the 1951 case.
- **D:** Incorrect: The attack on clauses (4) and (5) belongs to Minerva Mills after the Forty-second Amendment.

Examiner trap: Shankari Prasad concerns Article 13 and amendability; it did not anticipate the basic-structure ceiling.

Q10. The distinctive remedial technique used in Golak Nath (1967) was:

- A. requiring State ratification for every Fundamental Rights amendment.
- B. prospective overruling, leaving earlier amendments undisturbed while restricting future abridgment of Fundamental Rights.
- C. testing only future Ninth Schedule insertions for basic-structure damage.
- D. suspending the judgment until Parliament held a referendum.

Answer: B.

- **A:** Incorrect: Golak Nath did not enlarge the Article 368 proviso or federalise every rights amendment.
- **B:** Correct: The Court changed the rule prospectively rather than unsettling constitutional amendments already made.
- **C:** Incorrect: The post-24 April 1973 Ninth Schedule cutoff was formulated in Waman Rao after Kesavananda.
- **D:** Incorrect: No referendum condition formed part of the judgment or Article 368.

Examiner trap: Prospective overruling protects past legal effects; it is different from severing an offending clause.

Q11. Which statement most accurately states the constitutional response made by the Twenty-fourth Amendment?

- A. It created the Ninth Schedule and Article 31B.
- B. It inserted Article 31C for Article 39(b) and (c) laws.
- C. It expressly affirmed constituent power, excluded Article 368 amendments from Article 13 and made Presidential assent obligatory.
- D. It declared every amendment immune from judicial review and the amending power unlimited.

Answer: C.

- **A:** Incorrect: Article 31B and the Ninth Schedule came through the First Amendment in 1951.
- **B:** Incorrect: Article 31C was the distinct intervention of the Twenty-fifth Amendment.
- **C:** Correct: The 1971 amendment answered Golak Nath through coordinated changes to Articles 13 and 368 and the word "shall" for assent.
- **D:** Incorrect: The attempt to exclude review and announce unlimited power came through section 55 of the Forty-second Amendment.

Examiner trap: Keep the Twenty-fourth Amendment's three moves together: constituent power, Article 13 exclusion and mandatory assent.

Q12. What was the legally important treatment of Article 31C as inserted by the Twenty-fifth Amendment in Kesavananda Bharati?

- A. The whole Twenty-fifth Amendment was struck down without severance.
- B. Article 31C was upheld as absolute immunity for every Directive Principle.
- C. Only the replacement of "compensation" by "amount" was examined; Article 31C was left undecided.
- D. The protection connected with Article 39(b) and (c) was substantially sustained, but the clause excluding judicial scrutiny of the claimed nexus was not.

Answer: D.

- **A:** Incorrect: The Court did not invalidate the amendment as an indivisible whole.
- **B:** Incorrect: The original Article 31C concerned Article 39(b) and (c), not all Directive Principles.
- **C:** Incorrect: Both the property-language changes and the new Article 31C architecture were part of the constitutional dispute.
- **D:** Correct: The disposition illustrates severability-constitutional protection survived in bounded form while conclusive exclusion of review failed.

Examiner trap: The Twenty-fifth Amendment is evidence of partial survival, not an all-valid or all-void result.

Q13. Which statement best captures the limited holding of Kesavananda Bharati (1973)?

- A. A 13-judge Bench decided 7:6 that every constitutional provision is amendable, but Parliament cannot damage or destroy the basic structure.
- B. Fundamental Rights can never be amended, irrespective of effect.
- C. Only the Preamble lies beyond amendment.
- D. Every amendment requires ratification by at least half the States.

Answer: A.

- **A:** Correct: The settlement restored broad amendability while imposing an identity-preserving substantive limit on Article 368.
- **B:** Incorrect: That repeats Golak Nath's absolute rights position, which Kesavananda did not preserve.
- **C:** Incorrect: The Preamble may be amended, but not so as to destroy a basic feature reflected in it or elsewhere.
- **D:** Incorrect: State ratification depends on the proviso subject, not on the importance of every amendment.

Examiner trap: The 7:6 holding is a limit on destructive effect, not one unanimous catalogue of permanently frozen clauses.

Q14. What did Indira Nehru Gandhi v. Raj Narain (1975) principally demonstrate for basic-structure review?

- A. The Forty-fourth Amendment validly insulated the Prime Minister's election.
- B. The offending part of the Thirty-ninth Amendment could not remove specified election disputes from judicial scrutiny consistently with free and fair elections, rule of law and review.
- C. All election laws must be enacted through Article 368.
- D. The entire Constitution became unamendable during an electoral dispute.

Answer: B.

- **A:** Incorrect: The attempted insulation belonged to the Thirty-ninth, not the Forty-fourth, Amendment.
- **B:** Correct: The case applied the new doctrine to protect democratic contestability and legal adjudication of high-office elections.
- **C:** Incorrect: Ordinary election legislation remains possible within legislative competence and constitutional rights.
- **D:** Incorrect: The judgment invalidated a targeted constitutional intervention rather than freezing the whole constitutional order.

Examiner trap: The case number trap is Thirty-ninth Amendment versus Forty-fourth Amendment; the remedy was targeted, not total.

Q15. Which pairing of Forty-second Amendment provisions and their objects is correct?

- A. Section 4 inserted Article 368(4)-(5); section 55 created the Ninth Schedule.
- B. Section 4 made Presidential assent optional; section 55 required referendums.
- C. Section 4 expanded Article 31C to all Directive Principles; section 55 inserted Article 368(4)-(5) to exclude review and declare unlimited power.
- D. Section 4 abolished Article 31C; section 55 removed constituent power from Parliament.

Answer: C.

- **A:** Incorrect: The section numbers and subjects are transposed, and the Ninth Schedule predates the Forty-second Amendment.
- **B:** Incorrect: Neither section introduced those procedures; Article 368 still lacks a referendum.
- **C:** Correct: The two provisions respectively disturbed the Rights-Directive Principles balance and tried to immunise unlimited amending power.
- **D:** Incorrect: The amendment moved in the opposite direction by enlarging protection and parliamentary claims.

Examiner trap: Remember "4 = Article 31C expansion" and "55 = Article 368(4)-(5)" before stating the Minerva Mills result.

Q16. Why is Minerva Mills (1980) central to the doctrine of limited amending power?

- A. It held that only Fundamental Rights form the basic structure.
- B. It required all Directive Principles amendments to secure State ratification.
- C. It upheld Article 368(4)-(5) but read them narrowly.
- D. It invalidated sections 4 and 55 of the Forty-second Amendment because rights-Directive Principles harmony, judicial review and limited amending power could not be destroyed.

Answer: D.

- **A:** Incorrect: The basic structure is not confined to Part III and includes institutional and structural features.
- **B:** Incorrect: The judgment did not alter the closed ratification proviso.
- **C:** Incorrect: Clauses (4) and (5) were struck, not preserved as valid unlimited-power provisions.
- **D:** Correct: A Constitution-created limited power cannot enlarge itself into an unreviewable power of constitutional destruction.

Examiner trap: Minerva Mills addresses both section 4 and section 55; do not reduce it to Article 368(4)-(5) alone.

Q17. The principal significance of Waman Rao for Ninth Schedule review is that it:

- A. fixed 24 April 1973 as the prospective dividing line for challenges to later Ninth Schedule insertions.
- B. treated every pre-1973 listed law as invalid.
- C. abolished Article 31B from the date of judgment.
- D. extended Golak Nath's Article 13 rule to every ordinary statute.

Answer: A.

- **A:** Correct: Amendments inserting laws after the Kesavananda date were left open to basic-structure challenge, while earlier insertions were not reopened on that ground.
- **B:** Incorrect: The Court protected, rather than invalidated wholesale, the pre-cutoff constitutional amendments adding laws.
- **C:** Incorrect: Article 31B continued; its post-cutoff use became constitutionally reviewable.
- **D:** Incorrect: The case applied basic structure to constitutional amendments and did not revive an all-purpose Golak Nath formula for statutes.

Examiner trap: The cutoff governs the amendment inserting a law into the Schedule; reviewability after it is not automatic invalidity.

Q18. Under I.R. Coelho (2007), a law inserted into the Ninth Schedule after 24 April 1973:

- A. is void merely because it abridges any Fundamental Right.
- B. is reviewable to determine whether the rights impact damages a basic feature of the Constitution.
- C. receives absolute immunity once the President assents to the inserting amendment.
- D. can be examined only for legislative competence and never for Part III impact.

Answer: B.

- **A:** Incorrect: The Court requires a basic-structure impact, not a rule that every rights abridgment automatically voids the insertion.
- **B:** Correct: The analysis links the affected Part III right to a basic feature and measures the degree and effect of the immunised violation.
- **C:** Incorrect: Presidential assent cannot convert Article 31B into post-1973 blanket immunity.
- **D:** Incorrect: Coelho specifically preserves rights-based basic-structure scrutiny in addition to other constitutional controls.

Examiner trap: Write the three-step test: affected right -> basic feature -> damaging effect; do not stop at "rights violation".

Q19. Which statement about identifying the basic structure is constitutionally safest?

- A. Kesavananda Bharati unanimously published a closed list binding every later case.
- B. Only features written in the Preamble can qualify.
- C. The doctrine is non-exhaustive and case-attributed; later cases identify features in their own factual and constitutional settings.
- D. Any value mentioned by one judge automatically invalidates future amendments.

Answer: C.

- **A:** Incorrect: The judges produced overlapping opinions, not a single exhaustive catalogue endorsed in identical terms.
- **B:** Incorrect: The Preamble is important evidence, but structural features also arise from Parts, Articles and institutional design.
- **C:** Correct: Attribution distinguishes the core limitation from particular features developed through Indira Gandhi, Minerva Mills, Bommai, L. Chandra Kumar and NJAC.
- **D:** Incorrect: A feature claim still requires constitutional grounding, precedent and proof of damage by the challenged amendment.

Examiner trap: Name the case attached to the feature and avoid the phrase "the Supreme Court's final list".

Q20. Which is the technically correct use of Anjum Kadari (2024 INSC 831)?

- A. It ended basic-structure review of constitutional amendments.
- B. It made secularism irrelevant to ordinary-law review.
- C. It immunised every education statute from Part III.
- D. It held that an ordinary statute cannot be invalidated solely for violating basic structure; the defect must be tied to competence, Part III or another constitutional provision.

Answer: D.

- **A:** Incorrect: The judgment reaffirmed the distinction that leaves amendment review under Kesavananda intact.
- **B:** Incorrect: Secularism may operate through concrete constitutional provisions; only the free-standing label is insufficient.
- **C:** Incorrect: Statutes remain reviewable for legislative and rights defects, including education-related constitutional commands.
- **D:** Correct: The decision disciplines the form of ordinary-law challenges without shrinking written-constitutional judicial review.

Examiner trap: For a statute, write "violates Articles X/Y embodying the feature," not merely "violates basic structure".

Q21. Which provision was added to the Article 368 ratification proviso by the One Hundred and First Amendment?

- A. Article 279A
- B. Article 280
- C. Article 312
- D. Article 301

Answer: A.

- **A:** Correct: Article 279A establishes the GST Council and is expressly named in the proviso after the GST constitutional amendment.
- **B:** Incorrect: The Finance Commission article is not individually listed in the ratification proviso.
- **C:** Incorrect: All India Services under Article 312 are not added as a separate named item.
- **D:** Incorrect: Freedom of trade under Article 301 does not independently appear in the closed proviso list.

Examiner trap: GST Council is a specific textual addition; do not replace it with the broader phrase "all fiscal federalism".

Q22. Which statement most accurately connects the NJAC judgment with basic structure?

- A. It invalidated every statute touching court administration.
- B. It invalidated the Ninety-ninth Amendment framework because judicial independence is a basic feature, with the dependent NJAC Act falling with that constitutional design.
- C. It held judicial appointments wholly beyond constitutional amendment.
- D. It applied basic structure as a free-standing test to an unrelated ordinary Act.

Answer: B.

- **A:** Incorrect: Court-administration statutes are not categorically prohibited and must be tested against specific constitutional limits.
- **B:** Correct: The decisive target was a constitutional amendment altering appointments architecture in a manner the majority found destructive of judicial independence.
- **C:** Incorrect: Appointment mechanisms may be amended, but not in a way that damages the protected institutional feature.
- **D:** Incorrect: The case cannot be converted into a general ordinary-statute doctrine contrary to Anjum Kadari.

Examiner trap: NJAC is amendment-specific evidence for judicial independence, not a licence to strike every judicial statute on a slogan.

Q23. What is the central basic-structure proposition of L. Chandra Kumar (1997)?

- A. Tribunal decisions are immune from High Court scrutiny.
- B. Parliament cannot create tribunals under Articles 323A and 323B.
- C. Judicial review under Articles 32 and 226/227 is integral to the basic structure, so tribunal decisions remain subject to constitutional-court review.
- D. Every tribunal must be created by constitutional amendment.

Answer: C.

- **A:** Incorrect: The judgment rejected final exclusion of High Court review over tribunal decisions.
- **B:** Incorrect: Tribunals may function as courts of first instance within constitutionally permissible arrangements.
- **C:** Correct: The Court preserved the supervisory and review jurisdiction of the Supreme Court and High Courts as an essential structural safeguard.
- **D:** Incorrect: Ordinary legislation may establish tribunals under the constitutional grants, subject to review and institutional safeguards.

Examiner trap: The case protects constitutional-court review; it does not abolish tribunals or make them constitutionally redundant.

Q24. The amendment-versus-replacement distinction most directly asks whether:

- A. the Bill was introduced by a minister.
- B. the President delayed assent.
- C. every State ratified the text.
- D. the constitutional order retains its basic identity after the change.

Answer: D.

- **A:** Incorrect: Sponsorship concerns procedure, not whether the old Constitution survives as the same legal order.
- **B:** Incorrect: Delay is not the conceptual boundary between amendment and constituent founding.
- **C:** Incorrect: Even unanimous political support cannot by itself transform a destructive replacement into a valid Article 368 amendment.
- **D:** Correct: Article 368 presupposes continuity; destruction of the framework that creates the amending power resembles a new constituent act.

Examiner trap: Political magnitude and legal identity are different questions; a large amendment may still preserve the Constitution.

Q25. What is the verified position of the One Hundred and Sixth Amendment as checked on 7 September 2026?

- A. S.O. 1922(E) commenced the Act on 16 April 2026, but Article 334A still makes operational reservation depend on the post-commencement census figures and delimitation.
- B. Presidential assent in 2023 immediately reserved seats without further constitutional conditions.
- C. The defeated One Hundred and Thirty-first Amendment Bill automatically implemented women's reservation.
- D. The Act remains wholly uncommenced because no Gazette notification exists.

Answer: A.

- **A:** Correct: Commencement activated the constitutional framework, while Article 334A preserves distinct census-publication and delimitation gates.
- **B:** Incorrect: Enactment and assent did not by themselves satisfy the express operational conditions.
- **C:** Incorrect: A defeated proposal has no amending effect and cannot operationalise another constitutional measure.
- **D:** Incorrect: The official Gazette notification 271834 records the appointed commencement date.

Examiner trap: Keep enactment, commencement and operation in separate columns; one date cannot silently perform all three functions.

Q26. What did the Lok Sabha division on the Constitution (One Hundred and Thirty-first Amendment) Bill, 2026 illustrate?

- A. The proposed 850-seat ceiling became law after 298 ayes.
- B. A Bill may clear the total-membership-majority limb yet fail the two-thirds present-and-voting limb.
- C. State ratification can cure failure in the first House.
- D. A joint sitting becomes available when only the second limb fails.

Answer: B.

- **A:** Incorrect: The proposal was negated and never altered Article 81 or any other constitutional provision.
- **B:** Correct: With 528 present and voting, 352 ayes were needed for the second limb; 298 exceeded the total-membership majority but not two-thirds.
- **C:** Incorrect: Ratification occurs only after passage in both Houses and cannot substitute for a failed parliamentary threshold.

- **D:** Incorrect: Article 368 provides no joint-sitting escape from either form of House failure.

Examiner trap: Use the division only as arithmetic evidence; never cite the proposed seat numbers as operative law or precedent.

Q27. Which statement correctly distinguishes an effective majority from the Article 368 majority?

- A. They are identical because vacancies are ignored in both.
- B. Article 368 uses only two-thirds of effective strength.
- C. An effective majority uses the House's then-existing strength after vacancies; Article 368 separately requires a majority of total membership plus two-thirds present and voting.
- D. Effective majority is the State-ratification rule under Article 368.

Answer: C.

- **A:** Incorrect: Vacancies affect effective strength but do not reduce Article 368's total-membership limb.
- **B:** Incorrect: Article 368 neither substitutes effective strength nor uses it as the sole denominator.
- **C:** Correct: The distinction prevents the removal-majority concept used elsewhere from being imported into constitutional amendment arithmetic.
- **D:** Incorrect: State ratification is by resolution with an ordinary present-and-voting majority, not an effective majority.

Examiner trap: "Total membership" in Article 368 means full sanctioned strength, not "all the then members".

Q28. Which statement best describes State ratification under the Article 368 proviso?

- A. States may amend the Bill before ratifying it.
- B. The Governor's assent converts the ratification resolution into State law.
- C. Union Territory legislatures count toward the half-State threshold.
- D. The passed parliamentary text is ratified by resolutions of not less than half the State legislatures; Article 368 sets no time limit and gives States no amendment initiative.

Answer: D.

- **A:** Incorrect: A State legislature may ratify or refuse the parliamentary text, not rewrite it.
- **B:** Incorrect: Ratification is a legislative resolution under the federal amendment process, not a State Bill awaiting gubernatorial assent.
- **C:** Incorrect: The constitutional expression is "States"; Union Territory legislatures do not enter the count.
- **D:** Correct: State participation is a selective veto over listed federal subjects, bounded by the text and sequence of Article 368.

Examiner trap: State role is consent after parliamentary passage, not initiation, textual amendment or executive assent.

Q29. In an Article 368 vote, 300 members are present, 270 vote and 30 abstain. What is the denominator for the two-thirds present-and-voting limb?

- A. 270
- B. 300
- C. The total membership of the House
- D. Only the affirmative votes

Answer: A.

- **A:** Correct: Abstainers are present but not voting, so the second denominator contains the 270 members who cast a vote.
- **B:** Incorrect: Counting abstentions would replace "present and voting" with the broader phrase "present".
- **C:** Incorrect: Total membership supplies the separate first limb and cannot be reused automatically for the second.
- **D:** Incorrect: The denominator includes both ayes and noes; otherwise the fraction would become circular.

Examiner trap: Abstention can reduce the second denominator but never the full-strength threshold in the first limb.

Q30. Which correction is necessary to the statement "Abolition of a State Legislative Council needs only a simple majority"?

- A. Rajya Sabha alone passes the final law.
- B. Parliament's law is ordinary, but the initiating State Assembly resolution requires the special majority prescribed by Article 169.
- C. Only the Governor may initiate abolition.
- D. Every State must ratify the proposal.

Answer: B.

- **A:** Incorrect: Both Houses of Parliament participate in the ordinary parliamentary law where Parliament is bicameral.
- **B:** Correct: The common shorthand is incomplete unless the State Assembly's total-membership plus two-thirds present-and-voting precondition is stated.
- **C:** Incorrect: Article 169 assigns the initiating decision to the Legislative Assembly, not the Governor.
- **D:** Incorrect: Other States have no ratification role in changing one State's Council under Article 169.

Examiner trap: An outside-Article-368 route may still contain a specially entrenched trigger inside its own enabling Article.

Q31. An ordinary State statute is alleged to destroy federalism. After Anjum Kadari, what should the court ask first?

- A. Whether half the States ratified the ordinary statute.
- B. Whether the President gave mandatory assent under Article 368.
- C. Whether the State lacked legislative competence or the statute violates an express constitutional provision embodying the federal limit.
- D. Whether federalism appears in any individual judge's list of basic features.

Answer: C.

- **A:** Incorrect: Article 368 ratification has no role in enacting an ordinary State law.
- **B:** Incorrect: Mandatory Presidential assent concerns a Constitution Amendment Bill, not ordinary State legislation.
- **C:** Correct: The challenge must be anchored in the distribution of power, Part III or another concrete constitutional command.
- **D:** Incorrect: A free-floating feature label cannot displace the written tests governing statutory validity.

Examiner trap: The same value may matter in both fields, but the legal route differs for statutes and constitutional amendments.

Q32. Which result best illustrates severability in constitutional-amendment review?

- A. Every challenged amendment must survive or fall as a whole.
- B. A court may rewrite a failed Bill into a different amendment.
- C. Prospective overruling and severability are identical remedies.
- D. An offending provision may be invalidated while separable valid provisions continue, as the Article 31C treatment and targeted amendment cases illustrate.

Answer: D.

- **A:** Incorrect: Constitutional adjudication does not impose an automatic all-or-nothing remedy where valid text can operate independently.
- **B:** Incorrect: Severability removes unconstitutional content; it does not author a new measure that Parliament never enacted.

- **C:** Incorrect: Prospective overruling controls temporal effect, whereas severability controls which textual parts remain operative.
- **D:** Correct: The remedy respects constitutional limits while preserving independently workable choices that do not damage the basic structure.

Examiner trap: Ask two separate questions: which part is invalid, and from what date does the legal rule operate?

PYQS AND ANSWER PRACTICE

PYQ provenance and answer-control ledger

Year	Stage	Question	Source and key control
2019	GS-II Mains	Q12	Local official paper and routed ledger; 15 marks, 250 words
2025	GS-II Mains	Q12	Local official paper and routed ledger; 15 marks, 250 words
2018	Prelims GS-I	Q5	Local official booklet; final official/local-official key not held, so answer letter withheld
2019	Prelims GS-I	Q45	Local official booklet; final official/local-official key not held, so answer letter withheld
2019	Prelims GS-I	Q47	Local official booklet; final official/local-official key not held, so answer letter withheld
2020	Prelims GS-I	Q13	Official scan wording checked; final official/local-official key not held, so answer letter withheld
2022	Prelims GS-I	Q13	Local official booklet; final official/local-official key not held, so answer letter withheld
2023	Prelims GS-I	Q34	Local official booklet; final official/local-official key not held, so answer letter withheld
2024	Prelims GS-I	Q66	Local official Set-A paper and final key; D
2025	Prelims GS-I	Q58	Local official Set-A paper and final key; A

Solved Mains PYQ 1. UPSC 2019 GS-II Q12

Question: "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power. **(15 marks, 250 words)**

Model solution.

Article 368 confers a broad constituent power, but the word "amend" does not authorise destruction of the constitutional order that creates Parliament.

The early cases allowed extensive amendment. *Shankari Prasad* and *Sajjan Singh* excluded constitutional amendments from "law" under Article 13. *Golak Nath* reversed that view prospectively, after which the Twenty-fourth Amendment expressly affirmed constituent power and mandatory Presidential assent. In *Kesavananda Bharati*, a thirteen-judge Bench decided 7:6 that Parliament may amend every Part, including Fundamental Rights, but cannot damage or destroy the basic structure.

Parliament therefore cannot enlarge its own authority into absolute power. Section 55 of the Forty-second Amendment inserted Article 368(4) and (5), excluding judicial review and declaring no limitation on constituent power. *Minerva Mills* invalidated those clauses because limited amending power and judicial review are themselves basic features: a delegated constitutional power cannot erase its source and limits. *Indira Nehru Gandhi* protected free and fair elections and review; *I.R. Coelho* preserved effect-based scrutiny of post-1973 Ninth Schedule insertions; the NJAC decision protected judicial independence.

Thus Parliament may restructure institutions and rights, but Article 368 ends where constitutional replacement begins. The doctrine permits transformation while preventing the amending body from abolishing constitutional supremacy, democratic contestability and independent review.

Audited model-answer word count: 204 words.

Why this earns marks: It answers the self-enlargement issue through the Twenty-fourth/Forty-second Amendment dialogue, the exact Kesavananda limit and *Minerva Mills* rather than merely listing features.

Answer-writing focus: Draw limited power -> attempted review exclusion -> Minerva Mills -> still limited and reserve the conclusion for amendment versus destruction.

Solved Mains PYQ 2. UPSC 2025 GS-II Q12

Question: Indian Constitution has conferred the amending power on the ordinary legislative institutions with a few procedural hurdles. In view of this statement, examine the procedural and substantive limitations on the amending power of the Parliament to change the Constitution. **(15 marks, 250 words)**

Model solution.

The Constitution uses the ordinary Houses of Parliament for amendment, but they exercise a specially constituted and doubly limited power.

Procedural limits: A Bill may begin in either House and be introduced by a minister or private member without prior Presidential recommendation. Each House must pass it separately by a majority of total membership and not less than two-thirds of members present and voting; there is no joint sitting. Amendments to the exact federal proviso subjects additionally need resolutions of not less than half the State legislatures before presentation to the President. States cannot initiate or alter the Bill. The President shall assent after the Twenty-fourth Amendment. Article 368 provides no referendum or special constituent convention.

The 2026 division on the defeated One Hundred and Thirty-first Amendment Bill illustrates the dual denominator: 298 ayes exceeded the Lok Sabha total-membership majority but fell below two-thirds of 528 present and voting.

Substantive limit: *Kesavananda Bharati* permits amendment of every Part but forbids damage to the basic structure. *Minerva Mills* protects judicial review and limited amending power; *Indira Nehru Gandhi, I.R. Coelho* and NJAC show applications to elections, Ninth Schedule immunity and judicial independence. The list is not closed, so courts must identify a textually and precedentially grounded feature and actual destructive effect.

Hence Parliament can transform the Constitution through entrenched procedure, but cannot replace its identity. Procedure checks the manner of change; basic structure checks its constitutional effect.

Audited model-answer word count: 237 words.

Why this earns marks: It visibly separates the two categories of limitation, states every decisive procedural control and qualifies the open-ended doctrine with a disciplined damage test.

Answer-writing focus: Use two headings-Procedural and Substantive-and do not spend the 250-word answer reciting a random amendment list.

Solved Prelims PYQ 1. UPSC 2018 GS-I Q5

Consider the following statements:

1. The Parliament of India can place a particular law in the Ninth Schedule of the Constitution of India.
2. The validity of a law placed in the Ninth Schedule cannot be examined by any court and no judgement can be made on it.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Concept analysis: Parliament may add a law to the Ninth Schedule through constitutional amendment. The second statement uses absolute-immunity language that conflicts with *Waman Rao* and *I.R. Coelho*: post-24 April 1973 insertions remain reviewable for basic-structure impact. Reviewability does not make every listed law invalid.

Solved Prelims PYQ 2. UPSC 2019 GS-I Q45

Consider the following statements:

1. The 44th Amendment to the Constitution of India introduced an Article placing the election of the Prime Minister beyond judicial review.
2. The Supreme Court of India struck down the 99th Amendment to the Constitution of India as being violative of the independence of judiciary.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Concept analysis: The attempted insulation of specified high-office election disputes belonged to the Thirty-ninth Amendment, not the Forty-fourth. The NJAC judgment invalidated the Ninety-ninth Amendment framework because judicial independence is a basic feature.

Solved Prelims PYQ 3. UPSC 2019 GS-I Q47

The Ninth Schedule was introduced in the Constitution of India during the prime ministership of:

A. Jawaharlal Nehru B. Lal Bahadur Shastri C. Indira Gandhi D. Morarji Desai

Answer withheld pending official UPSC key.

Concept analysis: Article 31B and the Ninth Schedule were inserted by the First Amendment Act, 1951. The constitutional chronology places that amendment during Jawaharlal Nehru's prime ministership, but the answer letter is not printed without the held final official key.

Solved Prelims PYQ 4. UPSC 2020 GS-I Q13

Consider the following statements:

1. The Constitution of India defines its basic structure in terms of federalism, secularism, Fundamental Rights and democracy.
2. The Constitution of India provides for judicial review to safeguard the citizens' liberties and to preserve the ideals on which the Constitution is based.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Concept analysis: The constitutional text does not enumerate or define a closed basic-structure list; the doctrine was judicially developed. Judicial review, however, is constitutionally expressed through provisions including Articles 13, 32 and 226 and has itself been treated as basic.

Solved Prelims PYQ 5. UPSC 2022 GS-I Q13

Consider the following statements:

1. A bill amending the Constitution requires a prior recommendation of the President of India.
2. When a Constitution Amendment Bill is presented to the President of India, it is obligatory for the President of India to give his/her assent.
3. A Constitution Amendment Bill must be passed by both the Lok Sabha and the Rajya Sabha by a special majority and there is no provision for joint sitting.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Answer withheld pending official UPSC key.

Concept analysis: Prior Presidential recommendation is not required. The Twenty-fourth Amendment made assent obligatory, and both Houses must separately pass the amendment by the Article 368 majority without a joint sitting.

Solved Prelims PYQ 6. UPSC 2023 GS-I Q34

In India, which one of the following Constitutional Amendments was widely believed to be enacted to overcome the judicial interpretations of the Fundamental Rights?

A. 1st Amendment B. 42nd Amendment C. 44th Amendment D. 86th Amendment

Answer withheld pending official UPSC key.

Concept analysis: The First Amendment altered the Article 19 restriction framework and inserted Articles 31A and 31B with the Ninth Schedule in response to early rights adjudication. The answer letter remains withheld because the final official/local-official 2023 key is not held.

Solved Prelims PYQ 7. UPSC 2024 GS-I Q66

As per Article 368 of the Constitution of India, the Parliament may amend any provision of the Constitution by way of:

1. Addition
2. Variation
3. Repeal

Select the correct answer using the code given below:

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Final official/local-official key verified: D.

Concept analysis: Article 368(1) expressly uses all three forms-addition, variation and repeal-while the basic-structure doctrine limits destructive effect, not the vocabulary of amendment.

Solved Prelims PYQ 8. UPSC 2025 GS-I Q58

Consider the following subjects under the Constitution of India:

I. List I-Union List, in the Seventh Schedule II. Extent of the executive power of a State III. Conditions of the Governor's office

For a constitutional amendment with respect to which of the above is ratification by the Legislatures of not less than one-half of the States required before presenting the Bill to the President of India for assent?

A. I and II only B. II and III only C. I and III only D. I, II and III

Final official/local-official key verified: A.

Concept analysis: Any Seventh Schedule List and Article 162, which governs the extent of State executive power, are proviso subjects. Conditions of the Governor's office are not independently named.

Six original Mains questions with model solutions

Original Q1. Explain how India's constitutional amendment design synthesises flexibility and rigidity. (10 marks, 150 words)

Model solution.

India uses graded entrenchment instead of one universal threshold. First, express constitutional provisions permit ordinary parliamentary law outside Article 368-for example, Articles 2-4 for State reorganisation and Article 11 for citizenship. Article 169 adds a qualification: Parliament's law is ordinary, but the initiating State Assembly resolution needs its prescribed special majority.

Second, most entrenched provisions require in each House a majority of total membership plus not less than two-thirds present and voting. Failure in either House ends the Bill because no joint sitting is available. Third, changes to the federal proviso subjects also require ratification by not less than half the State legislatures.

Procedure therefore combines adaptation with graduated consent. *Kesavananda Bharati* adds substantive rigidity: every Part may be amended, but constitutional identity cannot be destroyed. India is neither wholly flexible nor mechanically rigid; it is a layered system of ordinary change, special-majority change, federal consent and identity preservation.

Audited model-answer word count: 150 words.

Why this earns marks: It defines flexibility through the three routes, qualifies Article 169 and adds the basic-structure ceiling without diverting into a long chronology.

Answer-writing focus: Convert the body into a four-step rail: ordinary route -> special majority -> State consent -> identity limit.

Original Q2. The role of States in constitutional amendment is significant but narrowly confined. Discuss. (10 marks, 150 words)

Model solution.

States have no general amendment initiative under Article 368. A Constitution Amendment Bill begins only in either House of Parliament, and States do not ratify most amendments. Their decisive role arises only when the passed Bill changes the exact proviso subjects: Articles 54, 55, 73, 162, 241 and 279A; the named Union and State judiciary chapters; Chapter I of Part XI; any Seventh Schedule List; State representation in Parliament; or Article 368 itself.

Ratification follows passage by both Houses and must precede Presidential assent. Resolutions of not less than half the State legislatures are enough; States cannot amend the text, Union Territories do not count and Article 368 fixes no deadline. A gubernatorial assent stage is not added to the resolution.

Thus State participation protects the federal compact without creating a general State veto or coequal constituent assembly. The design is federally entrenched at selected points but Parliament-centred elsewhere.

Audited model-answer word count: 149 words.

Why this earns marks: It combines the exact subject clusters, procedural sequence and limits on State agency in a direct federalism verdict.

Answer-writing focus: Contrast "selective blocking voice" with "no initiation or rewriting power".

Original Q3. Critically examine the claim that the basic-structure doctrine converts judicial review into judicial supremacy. (15 marks, 250 words)

Model solution.

The doctrine empowers courts to invalidate a constitutional amendment that damages constitutional identity. Because Article 368 does not enumerate the protected features, the counter-majoritarian objection is substantial.

The criticism has three strengths. *Kesavananda Bharati* was a 7:6 decision with overlapping opinions rather than one closed feature list. Later cases attributed additional applications-free and fair elections in *Indira Nehru Gandhi*, limited amending power and Rights-Directive Principles harmony in *Minerva Mills*, federalism and secularism in *S.R. Bommai*, and judicial independence in *N.J. AC*. An open list leaves elected super-majorities uncertain and gives unelected judges the final institutional word. Impressionistic feature-identification could become a policy veto.

Yet review remains defensible. Parliament is a Constitution-created body, not a legally sovereign constituent founder. Section 55 of the Forty-second Amendment tried to exclude review and make power unlimited; *Minerva Mills* exposed the contradiction of a limited power erasing its limit. Democracy also includes future elections, opposition, liberty, federal voice and independent courts. *I.R. Coelho* uses an effect test rather than automatic invalidity, while *Anjum Kadari* refuses a free-standing basic-structure attack on ordinary statutes.

Legitimacy therefore depends on restraint: identify the feature's textual and precedential basis, prove actual damage rather than policy disagreement, address contrary authority and tailor the remedy through severability. Properly used, the doctrine is constitutional review; loosely used, it risks judicial supremacy.

Audited model-answer word count: 222 words.

Why this earns marks: It accepts the democratic objection, answers it through the Forty-second Amendment-Minerva chain and proposes an administrable restraint test.

Answer-writing focus: Present criticism and defence symmetrically, then make the final verdict conditional on reasoning discipline.

Original Q4. Explain the present constitutional position of laws inserted into the Ninth Schedule after 24 April 1973. (15 marks, 250 words)

Model solution.

Article 31B validates laws listed in the Ninth Schedule notwithstanding inconsistency with Part III, but the shield is not absolute for later constitutional amendments.

The First Amendment created Article 31B and the Schedule in 1951, initially protecting land-reform measures. *Kesavananda Bharati* then established on 24 April 1973 that Article 368 cannot damage the basic structure. In *Waman Rao*, the Supreme Court applied that doctrine prospectively to amendments adding laws after the *Kesavananda* date; pre-cutoff insertions were not reopened on basic-structure grounds.

I.R. Coelho unanimously clarified the post-cutoff test. The court identifies the Part III right affected by the listed law, asks whether the right's essence forms part of a basic feature, and examines whether the constitutional immunity causes damaging or destructive impact. Thus a law is reviewable because the inserting constitutional amendment is subject to Article 368's substantive limit. It is not void merely because it abridges any right.

Three distinctions are essential. Article 31A category protection differs from Article 31B listed-law validation. Judicial review concerns effect, not the political label of the statute. Finally, reviewability does not imply automatic invalidity; the required basic-structure impact must be proved.

The present position preserves land-reform and legislative space while preventing the Ninth Schedule from becoming a vault against constitutional identity and judicial review.

Audited model-answer word count: 212 words.

Why this earns marks: It gives origin, cutoff, the Coelho test and three close-option distinctions instead of repeating "Ninth Schedule is reviewable".

Answer-writing focus: Use the chain date of insertion -> affected right -> basic feature -> degree of impact -> remedy.

Original Q5. "A constitutional amendment may transform the Constitution, but it cannot replace its identity." Discuss. (20 marks, 250 words)

Model solution.

Article 368 is a power of amendment within an existing constitutional order. Addition, variation and repeal permit profound change, but the authority remains constituted by the Constitution and cannot abolish its own source.

Transformative amendment is both legitimate and necessary. Amendments have reworked property relations, strengthened social justice, constitutionalised local government, created the GST framework and expanded representation. *Kesavananda Bharati* therefore rejected Golak Nath's absolute rights lock: Parliament may amend every Part, including Fundamental Rights and the Preamble.

The boundary is destructive effect. A change becomes replacement when it disables the features that keep the order recognisably constitutional-constitutional supremacy, democratic contestability, judicial review, limited government and institutional independence. *Indira Nehru Gandhi* rejected election immunity for specified high offices. Section 55 of the Forty-second Amendment attempted to make constituent power unlimited; *Minerva Mills* struck it because limited amending power and judicial review are basic. NJAC shows that even institutionally ambitious reform must preserve judicial independence.

Courts should not equate novelty with destruction. They must identify a case-supported feature, compare the constitutional position before and after amendment, distinguish regulation from disabling damage and preserve valid parts through severability. Political disagreement or reduced institutional preference is insufficient.

Thus basic structure is not an anti-reform fossil. It separates constitutional transformation, which renews the charter, from constitutional replacement, which would require a new exercise of original constituent authority rather than Article 368.

Audited model-answer word count: 228 words.

Why this earns marks: It demonstrates transformative capacity with named amendment fields, then states a workable identity-and-effect test with case evidence and remedial caution.

Answer-writing focus: Avoid saying "basic features can never be touched"; the correct claim is that they cannot be damaged or destroyed.

Original Q6. Trace Parliament-Court dialogue in the evolution of the basic-structure doctrine and assess its constitutional significance. (20 marks, 250 words)

Model solution.

The doctrine emerged through institutional dialogue over Fundamental Rights, social reform and the location of ultimate constitutional authority.

Shankari Prasad and *Sajjan Singh* allowed rights amendment by excluding constitutional amendments from Article 13. *Golak Nath* reversed that rule prospectively and treated rights as beyond future abridgment. Parliament answered through the Twenty-fourth Amendment's express constituent power and Article 13 exclusion, and through the Twenty-fifth Amendment's property and Article 31C changes.

Kesavananda Bharati produced a synthesis: every Part remained amendable, but a 7:6 majority denied power to damage the basic structure. The dialogue continued. The Thirty-ninth Amendment tried to insulate specified election disputes; *Indira Nehru Gandhi* protected free and fair elections and review. Sections 4 and 55 of the Forty-second Amendment expanded Article 31C and claimed unlimited, unreviewable power; *Minerva Mills* invalidated them while recognising Rights-Directive Principles harmony, judicial review and limited amending power.

Later cases refined application rather than replacing the settlement. *Waman Rao* fixed the 24 April 1973 cutoff; *I.R. Coelho* developed effect-based Ninth Schedule scrutiny; *L. Chandra Kumar* protected constitutional-court review; NJAC protected judicial independence. *Anjum Kadari* confined the free-standing doctrine to constitutional amendments, preserving text-linked review of statutes.

The significance is dual: democratic institutions retain broad transformative capacity, while no temporary majority can legally extinguish constitutional identity. The dialogue remains legitimate only when courts attribute features carefully and Parliament treats amendment as constitutional stewardship rather than sovereignty.

Audited model-answer word count: 232 words.

Why this earns marks: It traces claim, response and synthesis across amendments and judgments, then evaluates both transformative capacity and judicial restraint.

Answer-writing focus: Organise chronology as alternating institutional moves, not as an unanalysed case list.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Amendment versus replacement and original constituent authority

- [ANALYSIS] Article 368 is a **derived constituent power** operating inside the existing Constitution. A new constitution would claim original constituent authority rather than merely alter the old charter.
- [ANALYSIS] The identity inquiry asks whether the constitutional order before and after change remains recognisably continuous. It does not constitutionalise every historical arrangement.
- [FACT] Justice H.R. Khanna's reasoning in *Kesavananda Bharati* is central to the continuity formulation: amendment cannot mean abrogation of the Constitution's basic framework.
- [LIMIT] A sweeping textual change is not automatically replacement; functional destruction of basic features is the decisive concern.

Transformative constitutional amendment

- [ANALYSIS] Basic structure is compatible with transformation. Amendments can redistribute power, deepen social justice, redesign institutions and expand representation.
- [ANALYSIS] The doctrine should preserve constitutional conditions for transformation-democratic participation, rights, federal voice, review and institutional independence-rather than freeze policy choices.
- [LIMIT] "Transformative" is not an immunity label. A reform still fails if its means disable a basic feature.

Comparative models of unamendability

Model	Source of limit	Strength	Risk
Express eternity clause, as in Germany's Basic Law	Written constitutional text	Higher predictability	Text may be rigid or under-inclusive
Implied basic structure, India	Text, structure, history and precedent	Adaptable to new threats	Uncertainty and judicial discretion
Political-only amendment control	Super-majorities/elections	Strong immediate majoritarian legitimacy	Weak defence against democratic self-destruction

Comparative constitutional courts in some jurisdictions have used identity, substitution or basic-structure reasoning, but Indian Article 368 and Supreme Court precedent remain controlling.

Institutional self-restraint and remedies

A disciplined court should identify the precise feature, show its textual and precedential basis, test the amendment's actual operation, confront less restrictive interpretations and preserve valid portions through severability. It should not treat novelty, institutional discomfort or policy disagreement as constitutional destruction.

CONSOLIDATED REGISTER NOTES

Article 368 architecture

- Part XX; constituent power; addition, variation or repeal.
- Parliament uses ordinary legislative institutions in a special constitutional capacity.
- Every Part is amendable; basic structure cannot be damaged or destroyed.
- Constitutional supremacy rejects both parliamentary absolutism and unreasoned judicial supremacy.

Three constitutional-change routes

1. **Outside Article 368:** express ordinary-law mechanisms-Articles 2-4, 11, 169, 239A, Fifth Schedule paragraph 7, Sixth Schedule paragraph 21 and other specifically authorised operational fields.
2. **Article 368 special majority:** majority of total membership + not less than two-thirds present and voting, in each House separately.
3. **Federal route:** Route 2 + ratification by resolutions of not less than half the State legislatures.

Majority trap: Article 368 total membership is not effective strength. Abstentions leave the first limb unchanged and are excluded from the second denominator.

Procedure capsule

- Either House; minister or private member; no prior Presidential recommendation.
- Both Houses pass separately; no joint sitting.
- State ratification, when required, precedes Presidential presentation.
- President shall assent after the Twenty-fourth Amendment.
- No referendum or special constituent convention.
- Article 107(5) protects only the specified Rajya Sabha-pending posture on Lok Sabha dissolution.

Exact State-ratification subjects

- Articles 54, 55, 73, 162, 241 and 279A.
- Chapter IV of Part V; Chapter V of Part VI; Chapter I of Part XI.
- Any Seventh Schedule List.
- Representation of States in Parliament.
- Article 368.

State resolution: ordinary/simple majority; ratify or refuse; no rewriting, UT count or Governor-assent stage; no constitutional deadline; withdrawal issue textually unresolved.

Parliament-Court timeline

Year	Authority	One-line control
1951	<i>Shankari Prasad</i>	Amendment outside Article 13 "law"; Fundamental Rights amendable
1964/65	<i>Sajjan Singh</i>	Rule reaffirmed; early structural doubts in separate opinions
1967	<i>Golak Nath</i>	Amendment treated as law; future rights abridgment barred through prospective overruling
1971	Twenty-fourth Amendment	Constituent power express; Article 13 exclusion; President shall assent
1971	Twenty-fifth Amendment	Property changes; Article 31C for Article 39(b)/(c)
1973	<i>Kesavananda Bharati</i>	13 judges, 7:6; every Part amendable, basic structure indestructible
1975	<i>Indira Nehru Gandhi</i>	Thirty-ninth Amendment election immunity partly invalid; fair elections/review
1976	Forty-second Amendment	Section 4 expanded Article 31C; section 55 claimed unlimited unreviewable power
1980	<i>Minerva Mills</i>	Sections 4/55 invalid; limited power, review and FR-DPSP harmony basic
1980/81	<i>Waman Rao</i>	24 April 1973 Ninth Schedule cutoff
1994	<i>S.R. Bommai</i>	Federalism and secularism in Article 356 context
1997	<i>L. Chandra Kumar</i>	Articles 32 and 226/227 review powers basic
2007	<i>I.R. Coelho</i>	Post-cutoff Ninth Schedule effect-based review
2015	NJAC	Ninety-ninth Amendment invalid; judicial independence basic
2024	<i>Anjum Kadari</i>	No free-standing basic-structure attack on ordinary statute

Kesavananda precision

- 24 April 1973; thirteen judges; 7:6.
- Parliament may amend Fundamental Rights, Preamble, institutions and federal provisions through the correct route.
- No closed unanimous feature list.
- Test destructive degree and effect, not verbal contact.
- Severability may preserve independently workable valid provisions.

Ninth Schedule capsule

- First Amendment -> Article 31B + Ninth Schedule.
- Waman Rao -> prospective cutoff at 24 April 1973.
- Coelho -> affected right -> basic feature -> damaging effect.
- Reviewable does not mean automatically void.
- Detailed rights doctrine cross-links to Topic 7; Article 31C balance to Topic 8.

Case-attributed basic features

- *Kesavananda* opinions: constitutional supremacy, republican democracy, secularism, federalism, separation of powers, unity/integrity and dignity/liberty.
- *Indira Gandhi*: free and fair elections, rule of law, review.
- *Minerva Mills*: limited amending power, judicial review, FR-DPSP harmony.
- *Bommai*: federalism and secularism.
- *L. Chandra Kumar*: constitutional-court review.
- *Coelho*: rights/basic-feature impact.

- NJAC: judicial independence.

Always write **illustrative, non-exhaustive and case-attributed**.

Ordinary-law firewall

- Basic structure directly controls constitutional amendments.
- Ordinary statutes: legislative competence + Part III + other constitutional provisions.
- *Anjum Kadari* does not immunise statutes; it requires a concrete constitutional hook.

Current status capsule - checked 7 September 2026

- One Hundred and Thirty-first Amendment Bill: negatived; 298/230 with 528 voting; failed two-thirds limb; no law or precedent.
- One Hundred and Sixth Amendment: commenced 16 April 2026 by S.O. 1922(E); Article 334A operational gates remain.
- Never merge proposal, enactment, assent, commencement and operation.

Evaluation and answer verdict

- **Critique:** unwritten, open-ended, uncertain, counter-majoritarian, judicial-finality risk.
- **Defence:** limited Constitution-created power; democracy needs future contestability, rights, federal voice and independent review.
- **Restraint:** text + precedent + feature function + actual damage + narrow remedy.
- **Conclusion:** Article 368 permits transformative amendment but not replacement of constitutional identity.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Constitutional change and limited constituent power

CONSTITUTIONAL CHANGE

```

+-- EXPRESS ORDINARY-LAW ROUTES OUTSIDE ARTICLE 368
|   +-- Articles 2-4, 11, 169, 239A; Fifth/Sixth Schedule mechanisms
|
+-- ARTICLE 368 SPECIAL MAJORITY
|   +-- majority of total membership of each House
|   +-- not less than two-thirds present and voting
|
+-- SPECIAL MAJORITY + RATIFICATION BY NOT LESS THAN HALF THE STATES
    +-- only the exact federal proviso subjects
  
```

PART XX / ARTICLE 368 -> constituent power -> addition, variation or repeal

BASIC-STRUCTURE LIMIT -> every Part amendable; constitutional identity indestructible

ANSWER LINE -> India enables constitutional transformation, not constitutional self-destruction.

ASCII MASTER FLOW - PANEL 2/12: Three routes and majority distinctions

ROUTE 1: OUTSIDE ARTICLE 368

Articles 2-4 -> State reorganisation + consequential First/Fourth Schedule change
Article 11 -> citizenship law
Article 169 -> special State Assembly resolution, then ordinary parliamentary law
Article 239A / Fifth para 7 / Sixth para 21 -> express non-368 mechanisms
Other authorised fields -> quorum, salaries, procedure, privileges, election machinery,
delimitation, court strength/jurisdiction, language, Schedule details

ROUTE 2: ARTICLE 368 SPECIAL MAJORITY

majority of TOTAL MEMBERSHIP + 2/3 PRESENT AND VOTING in EACH House

ROUTE 3: ROUTE 2 + STATES

ratification by resolutions of >= half State legislatures

DO NOT CONFUSE

effective majority = then-existing strength after vacancies, used elsewhere
Article 368 total membership = full sanctioned strength

ASCII MASTER FLOW - PANEL 3/12: Exact Article 368 procedure

BILL

--- either House of Parliament
--- minister OR private member
--- no prior Presidential recommendation

|
v

EACH HOUSE PASSES SEPARATELY

--- total-membership majority
--- two-thirds present and voting
--- no joint sitting under Article 108

|
v

IF PROVISIO SUBJECT -> State ratification BEFORE Presidential presentation

|
v

PRESIDENT SHALL ASSENT -> Constitution stands amended under the Act's terms

NO REFERENDUM | NO SPECIAL CONSTITUENT BODY | NO GENERAL PROCEDURAL TIME LIMIT

ARTICLE 107(5) -> narrow protection for a Bill pending in Rajya Sabha not passed by Lok Sabha

ASCII MASTER FLOW - PANEL 4/12: Federal ratification exact map

RATIFICATION REQUIRED FOR CHANGE TO

--- Articles 54 and 55 -> President's election and manner
--- Articles 73 and 162 -> Union/State executive power
--- Article 241 -> High Courts for Union territories
--- Article 279A -> GST Council
--- Chapter IV of Part V -> Union Judiciary
--- Chapter V of Part VI -> High Courts in States
--- Chapter I of Part XI -> legislative relations
--- any List in the Seventh Schedule
--- representation of States in Parliament
--- Article 368 itself

STATE ROLE

Parliament passes first -> State legislature ratifies/refuses by resolution -> President
no initiation | no rewriting | no UT count | no Governor-assent stage | no text-set deadline
TRAP -> Governor conditions are not listed; "SC/HC and federal matters" is incomplete shorthand.

ASCII MASTER FLOW - PANEL 5/12: Article 13 and the early amendability dialogue

SHANKARI PRASAD (1951)

amendment != "law" under Article 13(2) -> First Amendment upheld

|

SAJJAN SINGH (1964/65)

rule reaffirmed -> separate opinions raise early structural doubts

|

GOLAK NATH (1967)

amendment treated as Article 13 law -> future FR abridgment barred

remedy = PROSPECTIVE OVERRULING, earlier amendments preserved

|

24TH AMENDMENT (1971)

Article 13(4) + Article 368(1)/(3) -> constituent power express; President shall assent

|

25TH AMENDMENT (1971)

property framework + Article 31C for Article 39(b)/(c)

|

KESAVANANDA (1973)

broad amendability restored, but basic structure cannot be damaged

ASCII MASTER FLOW - PANEL 6/12: Kesavananda Bharati exact holding and remedy

KESAVANANDA BHARATI -> 24 APRIL 1973 -> 13 JUDGES -> 7:6

HELD

+- Parliament may amend EVERY PART, including FR and Preamble

+- 24th Amendment valid subject to the substantive limit

+- no amendment may damage/destroy/abrogate BASIC STRUCTURE

+- Article 31C protection for Article 39(b)/(c) substantially survived

`-- conclusive exclusion of judicial scrutiny did not survive

NOT HELD

+- no closed unanimous feature list

+- no absolute textual freeze on Fundamental Rights

+- no free-standing statute test

`-- no ban on transformative amendment

SEVERABILITY -> remove unconstitutional part if valid remainder can operate independently

FORMULA -> wide subject-matter power + identity-preserving limit = limited constituent power

ASCII MASTER FLOW - PANEL 7/12: Indira Gandhi, Forty-second Amendment and Minerva Mills

39TH AMENDMENT -> attempted insulation of specified election disputes

|

INDIRA NEHRU GANDHI (1975)

free and fair elections + rule of law + judicial review protect democratic contestability

|

42ND AMENDMENT (1976)

SECTION 4 -> Article 31C expanded to ALL Directive Principles

SECTION 55 -> Article 368(4) review exclusion + 368(5) unlimited power

|

MINERVA MILLS (1980)

sections 4 and 55 void

+- limited amending power = basic

+- judicial review = basic

`-- harmony/balance of FR and DPSP = basic

ANSWER LINE -> A Constitution-created limited power cannot convert itself into sovereignty.

ASCII MASTER FLOW - PANEL 8/12: Ninth Schedule effect-based review

FIRST AMENDMENT (1951) -> ARTICLE 31B + NINTH SCHEDULE

ARTICLE 31A -> category protection | ARTICLE 31B -> listed-law validation

WAMAN RAO (decision 1980; reported 1981)

24 APRIL 1973 = prospective cutoff

pre-cutoff insertions not reopened on later basic-structure ground

post-cutoff inserting amendments open to challenge

|

I.R. COELHO (2007), nine judges

affected Part III right

-> does its essence form a basic feature?

-> does Ninth Schedule immunity damage/destroy that feature?

-> if yes, invalidity/remedy

TRAP -> post-1973 means REVIEWABLE, not automatically void.

ASCII MASTER FLOW - PANEL 9/12: Case-attributed features and ordinary-law boundary

CASE-ATTRIBUTED FEATURES

Kesavananda opinions -> constitutional supremacy, democracy, secularism, federalism,
separation of powers, unity/integrity, dignity/liberty

Indira Gandhi -> free and fair elections, rule of law, judicial review

Minerva Mills -> limited power, judicial review, FR-DPSP harmony

S.R. Bommai -> federalism and secularism in Article 356 context

L. Chandra Kumar -> Articles 32 and 226/227 review powers

I.R. Coelho -> rights/basic-feature impact

NJAC (2015) -> judicial independence; 99th Amendment invalid

NO EXHAUSTIVE LIST -> identify feature + constitutional foundation + case + damaging effect

ANJUM KADARI (2024 INSC 831)

ordinary statute invalidity -> competence / Part III / another constitutional provision

basic structure -> interpretive context, NOT a free-standing statutory invalidation ground

ASCII MASTER FLOW - PANEL 10/12: Current amendment lifecycle controls

131ST AMENDMENT BILL, 2026

introduced 16 Apr -> division 17 Apr -> 298 ayes / 230 noes / 528 voting

total-membership limb: 272 required -> satisfied

two-thirds limb: 352 required -> failed

STATUS -> NEGATIVED | no law | no precedent | no joint sitting | no State stage

106TH AMENDMENT ACT, 2023

assent/enactment in 2023

-> S.O. 1922(E), 16 Apr 2026 COMMENCEMENT

-> ARTICLE 334A OPERATIONAL GATES

first post-commencement census -> relevant figures published -> delimitation

-> checked status: framework commenced; reservation not yet operational through gates

TRAP -> proposal, enactment, commencement and operation are separate legal statuses.

ASCII MASTER FLOW - PANEL 11/12: Evaluation, transformation and restraint

CRITIQUE

unwritten limit | open-ended list | uncertainty | counter-majoritarian judicial finality

|

DEFENCE

Article 368 grants amendment, not destruction

democracy includes future elections, opposition, rights, federal voice and review

Minerva Mills -> limited power cannot erase its own limit

|

SELF-RESTRAINT TEST

1 identify feature through text/structure/precedent

2 show its constitutional function

3 prove actual disabling damage, not policy disagreement

4 distinguish regulation/rebalancing from destruction

5 use severability and a narrow remedy where possible

TRANSFORMATIVE AMENDMENT -> legitimate innovation preserving identity

REPLACEMENT/NEW CONSTITUTION -> original constituent act, not Article 368 amendment

ASCII MASTER FLOW - PANEL 12/12: PYQ and answer-writing spine

DIRECT MAINS

2019 GS-II Q12 -> limited power -> 24th -> Kesavananda -> 42nd section 55 -> Minerva

2025 GS-II Q12 -> procedural limits + substantive limit under separate headings

ROUTED PRELIMS

2018 Ninth Schedule immunity | 2019 Amendments 39/99 | 2019 Ninth Schedule origin

2020 no textual basic-structure definition | 2022 recommendation/assent/joint sitting

2023 First Amendment response | 2024 addition/variation/repeal | 2025 ratification subjects

ANSWER ROUTE

demand -> route -> procedure -> case holding -> constitutional effect -> qualification -> verdict

FINAL VERDICT

Parliament may amend every Part and pursue transformative reform,

but cannot use Article 368 to destroy constitutional identity or make limited power absolute.